COGS OF AUSTRALIA FOUNDATION

JOINT VENTURE PARTICIPATION AGREEMENT

FOUNDING MEMBER	The founding Member of the Joint Venture is the first natural or legal person to complete the electronic acceptance procedure in clause 8.1A and thereby generate the first cryptographic acceptance record under this Agreement. The founding Member enters this Agreement on the same terms as every subsequent Member and holds no special rights or privileges by virtue of being first. The founding Member's cryptographic acceptance record, together with the Personal S-NFT COG$ Token minted atomically with that acceptance, is retained by the Foundation as the inception record of the Joint Venture.
FOUNDING CARETAKER TRUSTEE	Thomas Boyd Cunliffe of 780 Sugarbag Road West, DRAKE 2469 NSW, in his capacity as Caretaker Trustee under the Declaration, giving the counterpart acknowledgement required by clause 10.10 of this Agreement by completing the Trustee electronic acceptance procedure in clause 10.10A. The Trustee Counterpart Record generated on acceptance is stored in the Foundation's secure systems with a SHA-256 hash committed to the System's public ledger as the foundational record of the Trustee's entry in their Trustee capacity. No wet ink signature or paper counterpart is required. If the founding Caretaker Trustee also elects to become a Member, they do so separately by completing the Member electronic acceptance procedure under clause 8.1A on the same terms as any other Member.
GOVERNING LAW	South Australia, Australia. The Supreme Court of South Australia has exclusive jurisdiction over the matters in clause 10.8(a)–(e) and non-exclusive jurisdiction over all other disputes arising from or in connection with this Agreement.
PRINCIPAL LEGISLATION	Corporations Act 2001 (Cth), as amended by the Corporations Amendment (Digital Assets Framework) Act 2026; Trustee Act 1936 (SA); Evidence Act 1929 (SA); Electronic Transactions Act 1999 (Cth); Electronic Transactions Act 2000 (NSW); Privacy Act 1988 (Cth); Anti-Money Laundering and Counter-Terrorism Financing Act 2006 (Cth); Income Tax Assessment Act 1997 (Cth); Commercial Arbitration Act 2011 (SA); Native Title Act 1993 (Cth); Aboriginal Land Rights Act 1983 (NSW).
SUPREME GOVERNING INSTRUMENT	This Joint Venture Participation Agreement is the supreme governing instrument of the Joint Venture. The CJVM Hybrid Trust Declaration and the Sub-Trust Deeds A, B, and C are subordinate to this Agreement and must be administered by the Trustee in accordance with this Agreement. In the event of any inconsistency between this Agreement and the Declaration or any Sub-Trust Deed, this Agreement prevails.
PERPETUAL DURATION	This Agreement is perpetual. Amendment is governed exclusively by clause 10.1. Entrenched founding principles in clause 1.5 may only be amended by the procedure in clause 1.6, which preserves the supervisory jurisdiction of the Supreme Court of South Australia.
FORM	This Agreement is not a deed. Execution is entirely electronic: the founding Member enters this Agreement by completing the electronic acceptance procedure under clause 8.1A, the founding Caretaker Trustee enters in their Trustee capacity by completing the Trustee electronic acceptance procedure under clause 10.10A, and every subsequent Member and Trustee enters on the same terms by the corresponding procedure. No wet ink signature, witness, or paper counterpart is required for entry into this Agreement. Members receive the electronic version of this Agreement authenticated by the SHA-256 hash of the foundational record.

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RECITALS

(A) The COGS of Australia Foundation Community Joint Venture Mainspring Hybrid Trust (the CJVM Hybrid Trust) is constituted by the CJVM Hybrid Trust Declaration (the Declaration). The Declaration and the Sub-Trust Deeds A, B, and C, below it in the instrument hierarchy, record the constitutional rules under which the trust operates.

(B) The CJVM Hybrid Trust is a Joint Venture Cryptographic Governance, Resource Management and Distribution System. The Members are carrying on business in common with a view to mutual benefit — community benefit, environmental stewardship, and governance of resources. Each Member contributes their membership consideration (which funds the setup and maintenance of the Members' Management Infrastructure, including hardware and software), their active participation in governance, their engagement in identifying and researching potential and existing Members Asset Pool holdings, and their collective direction of the trust's operations. The Members are not passive investors in a managed fund. They are the operators of the trust. They implement and run the trust's day-to-day operations through their own proprietary cryptographic governance, resource management, distribution, communications, and record keeping systems, which they build, maintain, vote on, and control. From the date of execution, the Members exercise operational control through an online cryptographic database system with SHA-256 hash records for every action, designed to seamlessly transfer to the proprietary blockchain when the physical infrastructure is deployed. The Members' Independence Vault Wallets are active from day one and are perpetually under development as the needs and desires of the Members evolve. The online cryptographic database system is itself the Members' operational control system from the date of execution — not a temporary arrangement or a system controlled by the Trustee. The SHA-256 hash records are generated for every Member-initiated action and are independently verifiable by any Member through their Independence Vault Wallet by comparing the SHA-256 hash of the record to the hash published through the System.

(C) The Declaration and Deeds contain the current rules of the trust. The Members are responsible for implementing those rules in their proprietary smart contract system. The Members may also, through their governance system, amend any non-entrenched operational rule as they see fit. The entrenched provisions of the Declaration are the constitutional foundation on which the Joint Venture is formed and cannot be altered except by the procedure in Declaration clause 35A.

(D) The Trustee is the key-holder of the trust safe. The Trustee holds legal ownership of trust property, owes fiduciary duty to the Members, and is the legal representative responsible for regulatory compliance, entering into external contracts, processing fiat income, and defending the trust. The Trustee's role as a signatory to the central Hybrid Trust Vault (the Members Vault) is specifically to ensure the security of the Members' assets in the Trustee's capacity as the legal title holder of all assets in the Vault. The Trustee is obligated to perform all multisignature functions at the behest of the Members, except where doing so would require the Trustee to breach its fiduciary duty or applicable law. The Trustee's multisignature role does not diminish the Members' day-to-day operational control. All other operational execution is coordinated by the Members through their proprietary systems, and the Members may operate the trust in all other ways as they see fit.

(E) This Agreement is the supreme governing agreement of the Joint Venture Members. It is made on the basis that the Declaration and Sub-Trust Deeds record and implement the Members' agreed rules. In the event of any inconsistency between this Agreement and the Declaration or any Sub-Trust Deed, this Agreement prevails and the Trustee must amend the Declaration or Deed accordingly.

(F) This Agreement is brought into force by the first cryptographic acceptance record generated under clause 8.1A by the founding Member — being the first natural or legal person to complete the electronic acceptance procedure — together with the Trustee Counterpart Record of the founding

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Caretaker Trustee generated under clause 10.10A. Every subsequent person becomes a party to this Agreement by acquiring a Beneficial Unit and the corresponding COG$ Token. Where acquisition occurs through the Foundation's website or digital platform, acceptance is evidenced by the Member's electronic acknowledgement and the cryptographic acceptance record permanently embedded in their Personal S-NFT COG$ Token at the moment of minting. The S-NFT COG$ Token itself is the Member's evidence of membership and acceptance of this Agreement on equal terms with all existing Members.

PART 1 — FORMATION OF THE JOINT VENTURE AND THE ENTRENCHED FOUNDATION

1.1 By acquiring a Beneficial Unit and the corresponding COG$ Token, each Member agrees to the entrenched provisions of the Declaration (clause 35) as the constitutional foundation on which the Joint Venture is formed. These provisions are not negotiable, not variable, and not subject to Member amendment except through the procedure in Declaration clause 35A. They are the bedrock of the Joint Venture.

1.2 The instrument hierarchy of the Joint Venture is: (a) First: This Agreement — the supreme governing instrument. All other instruments are subordinate to this Agreement. The Declaration must be administered in accordance with this Agreement. (b) Second: The Declaration and, below it, the Sub-Trust Deeds A, B, and C — the legal trust administration instruments, maintained by the Trustee at the direction of the Members. In the event of inconsistency between a Sub-Trust Deed and the Declaration, the Declaration prevails. (c) Third: the System (the Members' proprietary cryptographic smart contract management and distribution system defined in clause 2.1) — the operational implementation of the Members' rules, controlled by the Members. (d) Where this Agreement, the Declaration, and the System are all silent on a matter, the matter is determined by Members Poll under Part 6, subject always to the entrenched founding principles in clause 1.5 and to applicable law.

1.3 The Declaration is the legal instrument that gives the Members' Joint Venture legal effect in the Australian trust law system. It is maintained by the Trustee as a record of the Members' agreed rules. It is not an independent source of authority over the Members. The Trustee must administer the Declaration in accordance with this Agreement. The Trustee must not rely on any provision of the Declaration to override, delay, or refuse to implement a valid direction of the Members under this Agreement, except where compliance would require the Trustee to breach applicable law.

1.4 The Members may, by Special Resolution, direct the Trustee to amend the Declaration or any Sub-Trust Deed to give legal effect to any decision of the Members under this Agreement. The Trustee must execute such amendment within 30 days of the direction.

1.5 The Members establish the following entrenched founding principles as the constitutional foundation of the Joint Venture. These principles are recorded in the Declaration for legal effect, but they originate from and are controlled by this Agreement. The Declaration implements these principles; it does not create them. By acquiring a Beneficial Unit and COG$ Token, each Member agrees to these principles as the bedrock of the Joint Venture. (a) The Foundation objects and Members governance principles (Declaration Part 2), including the objects in clauses 4.1–4.15 governing resource stewardship, in-ground mineral value recognition, ESG engagement, First Nations custodianship, and the social justice mechanism. (b) The CJVM Hybrid Trust structure, the three ring-fenced sub-trusts, and the continuing trusteeship structure (Declaration Part 2A, clauses 1.2–1.8). (c) Direct CHESS registration of Sub-Trust A shares — no intermediaries (Declaration clause 35(d)). (d) One Member, one vote for national governance decisions — S-NFT holders (Declaration clause 11.1, clause 35(e)). (e) The anti-capture cap of 1,000,000 Units across all classes (Declaration clause

35(f)). (f) The dividend splits: 50/50 Beneficiary Distribution Stream; 50/25/25 Donation Dividend Stream; and the $2.00 direct Sub-Trust C payment per Donation COG$ (Declaration clause 35(g)). (g) The soulbound nature of Personal S-NFT COG$ (Declaration clause 35(i)). (h) The 12-month Stewardship Season lock period on ASX COG$ (Declaration clause 35(j)). (i) The prohibition on fiat sale, fiat redemption, or exchange listing of any COG$ Token or Unit (Declaration clauses 35(v) and 35(w)). (j) The 3-of-Board cryptographic multisignature requirement for all Members Vault operations (Declaration clause 35(t), operating alongside and not in substitution for any minimum standards set by the Australian Securities and Investments Commission for custody arrangements by Digital Asset Platforms or Tokenised Custody Platforms under the Corporations Act 2001 (Cth) as amended by the Corporations Amendment (Digital Assets Framework) Act 2026). (k) The First Nations Advisory Council, the FPIC obligations, and the ICIP protections (Declaration clauses 33A–33D, clause 35(l) and 35(m)). (l) The Poor ESG activist mandate — minimum 5% shareholding in Poor ESG targets (Declaration clause 35(r)). (m) The permanent, non-disposable Members Asset Pool (Declaration clause 35(z)). (n) The social justice mechanism — one Sub-Trust B income unit per S-NFT and kS-NFT (Declaration clause 35(q)). (o) The fixed membership fees: $4.00 Personal S-NFT; $1.00 Kids S-NFT (Declaration clause 35(x)). (p) The Foundation's right to develop, own, and operate its own Member-controlled blockchain infrastructure (Declaration clause 35(aa)). (q) The automatic zero-cost Landholder COG$ issuance entitlement for LALCs and Prescribed Bodies Corporate (Declaration clause 35(ab)). (r) The three-sub-trust structure and permanent ring-fencing of Sub-Trust A, Sub-Trust B, and Sub-Trust C (Declaration clause 35(c)). (s) The perpetual stewardship of the Seat of Country (Declaration clause 35(h)). (t) The prohibition on private ownership, sale, or capture of the Foundation (Declaration clause 35(k)). (u) The prohibition on reproducing or appropriating ICIP without FPIC and FNAC approval (Declaration clause 35(n)). (v) The Voting Weight Rules — no Voting Weight Rules may be adopted, amended, or replaced without the prior written endorsement of the FNAC (Declaration clause 35(o)). (w) The prohibition on distributing Sub-Trust A assets to individual Beneficiary Holders or for-profit entities on dissolution (Declaration clause 35(p)). (x) The Residential Weighted Vote mechanism — Affected Zone Members are entitled to a Residential Weighted Vote of 1,000 units per declared zone on Local Decision Votes (Declaration clause 35(s)). (y) The SNFT Holder Beneficiary rights over the Trustee, including the right to remove the Trustee by 75% Special Resolution (Declaration clause 35(u)). (z) The BNFT membership fee floor — the Business B-NFT COG$ membership fee may be increased but never decreased, and may never be set below the then-current Personal S-NFT COG$ fee of $4.00 AUD (Declaration clause 35(y)). (aa) The Tier 2 issuance gate — no Tier 2 Unit Class may be issued, activated, or otherwise made available before Expansion Day, and no resolution may waive, accelerate, remove, or circumvent that gate (Declaration clause 35(ac)). (ab) The limitation of Trustee powers to Trustee Functions as defined in Part 5 of this Agreement and the Declaration — no resolution of the Board or Members may expand Trustee authority beyond Trustee Functions or confer on the Trustee any role in the Members' day-to-day operational execution (Declaration clause 35(ad)). (ac) The [Gundoo Ngiri] Proprietary Node as a founding infrastructure asset of the Joint Venture — its name (upon FNAC endorsement), hosting location on Traditional Owner Country or LALC land, and community-controlled governance arrangements are entrenched; no resolution may change the hosting of the Foundation's first Proprietary Node from community-controlled land without the prior written endorsement of the FNAC (Declaration clause 35(ae)). (ad) Every further entrenched provision recorded in Declaration clause 35 as in force from time to time, each of which is adopted as an entrenched founding principle of this Agreement on the same terms as if separately enumerated here. To the extent any Declaration entrenched provision is not otherwise reflected in paragraphs (a) to (ac) or in paragraph (ae), this paragraph operates to include it automatically. No amendment, removal, or circumvention of any such provision may be effected except through the procedure in clause 1.6. (ae) The peer alliance principle

and the ring-fencing safeguards for international sister foundation alliances under Part 12 of this Agreement — specifically (i) the peer alliance principle in clause 12.3 (no agency, subordination, merger, joint venture for legal purposes, or common control; no pooling of trust property); (ii) the ring-fencing safeguards in clause 12.4(c) (Australian trust property under sole Trustee legal title; Australian Member data under the Privacy Act 1988 (Cth); Australian Members Vault multisignature authority exclusively with the Australian Board); (iii) the prohibition on cross-border token issuance in clause 12.4(d); and (iv) the prohibition on any sister foundation acquiring control over an entrenched founding principle in clause 12.4(e). (af) The minimum 30% Sub-Trust C priority allocation to First Nations communities — in each financial year, not less than thirty per cent (30%) of Sub-Trust C distributions must be allocated to First Nations community benefit, custodianship, and cultural heritage programs as a standing priority class of charitable beneficiaries (Declaration clause 35(a) read with Sub-Trust C Deed clause 9 — the Social Benefit Test). (ag) The Tier 2 regulatory preconditions framework in clause 4.9A — no Tier 2 issuance may occur without satisfaction of the regulatory preconditions in that clause, and no resolution of the Members or the Board may waive, accelerate, or remove those preconditions for a first issuance of a Tier 2 class or for any issuance following a material regulatory change. This entrenchment operates in addition to and not in substitution for the entrenched Expansion Day gate in paragraph (aa).

1.6 The entrenched founding principles may only be amended by: (a) Special Resolution (75%) of S-NFT holder Members through a Members Poll under Part 6 of this Agreement; followed by (b) the Trustee updating the Declaration in accordance with clause 1.4. The procedure in Declaration clause 35A records the legal mechanism; the authority originates from this Agreement. For the avoidance of doubt, the entrenched status of the provisions in clause 1.5 operates as between the Members and binds the Members, the Trustee, and the Board. It does not purport to oust, limit, or exclude the inherent or statutory supervisory jurisdiction of the Supreme Court of South Australia (including its jurisdiction under the Trustee Act 1936 (SA)), or of any other court of competent jurisdiction, to vary trust terms in the proper exercise of that jurisdiction. Any judicial variation of an entrenched provision is confined to the extent ordered by the Court and does not alter the entrenchment of the provision in its varied form. The Members acknowledge the Court's supervisory role as a safeguard for the Joint Venture and for its beneficiaries.

1.7 Governing Law and Definitions. This Agreement is governed by the law of South Australia, Australia. Terms defined in the Declaration have the same meanings in this Agreement unless separately defined. In addition to terms inherited from the Declaration, the following definitions apply to this Agreement: (a) Approved Ledger Infrastructure means any distributed ledger, blockchain, permissioned consensus network, proprietary community consensus protocol, or hybrid cryptographically secured record-keeping system approved from time to time for the Joint Venture's governance, registry, vault, token, and record functions. It includes the Members Consensus Network and may include interim or component implementations. Nothing in this Agreement or the Declaration binds the Foundation or the Members to any single vendor, protocol, or third-party infrastructure. The Foundation retains the right to develop, own, operate, and migrate to Member-controlled infrastructure, provided the 3-of-Board cryptographic authorisation requirement and governance-record integrity are maintained. (b) Expansion Day has the meaning given in the Declaration — the date on which the Members activate the [Gundoo Ngiri] Proprietary Node on the Members Consensus Network, as certified by the Board and endorsed by the FNAC. Expansion Day requires nothing beyond the will of the Members and the operational readiness of the Node. No external approval or regulatory confirmation is required. (c) Members Consensus Network means any consensus protocol, distributed ledger network, or cryptographic state machine developed, operated, or controlled by the Foundation (alone or in collaboration with community partners), hosted on

infrastructure owned by or under the proprietary control of the Foundation or its Members, and approved by the Board as Approved Ledger Infrastructure. The Members Consensus Network is not required to be compatible with any third-party protocol, public blockchain, or commercial provider. (d) Board means the governing body of the Foundation as defined and constituted under the Declaration, being the Directors of the Foundation's corporate legal entity from time to time, collectively acting as the body authorised to perform the 3-of-Board cryptographic multisignature function for the Members Vault under entrenched clause 1.5(j) and to exercise such other functions as are conferred on it by this Agreement and the Declaration. (e) Governance Foundation Day has the meaning given in the Declaration — being the date on which the CJVM Hybrid Trust commences governance operations under this Agreement and the Declaration, marked by the admission of the founding Member and the activation of the Members' cryptographic governance system. Governance Foundation Day precedes Expansion Day and does not require the activation of the Members Consensus Network or the issuance of Tier 2 tokens. (f) Token Class Definitions. In this Agreement, the following COG$ Token classes have the meanings given by the Declaration and are used with the abbreviations shown: (i) Personal S-NFT COG$ (S-NFT) means the soulbound non-fungible Member membership token; (ii) Kids S-NFT COG$ (kS-NFT) means the non-fungible membership token held on behalf of a child under 18; (iii) Business B-NFT COG$ (B-NFT) means the non-fungible business-entity membership token; (iv) Community COG$ (Class C or C-class) means the Member-allocation token class that functions as an immutable record of barter transactions for goods and services between Members, conferring no Beneficial Unit, no Sub-Trust B income unit, and no governance vote; allocated by the Trustee as consideration for approved contributed efforts, services, stewardship activities, and other Member-benefit contributions; issued from Governance Foundation Day; (v) Donation COG$ (Class D) means the token class representing voluntary contributions to Sub-Trust C with the dividend split entrenched under clause 1.5(f); (vi) ASX COG$ means the fungible Tier 2 token class backed by Australian Securities Exchange holdings in the Members Asset Pool; (vii) Landholder COG$ (Lh) means the Tier 2 token class issued per hectare to LALCs and Prescribed Bodies Corporate under entrenched clause 1.5(q); (viii) Business Property COG$ (BP) means the Tier 2 token class issued to business property holders; (ix) Resident COG$ (Lr) means the Tier 1 token class issued to residents of declared Affected Zones; and (x) RWA COG$ means the Tier 2 real-world-asset-backed token class. References to Tier 1 token classes mean the S-NFT, kS-NFT, B-NFT, Class C, Class D, Pay It Forward (Class P), and Resident (Class Lr) classes, each of which is issued from Governance Foundation Day upon satisfaction of the applicable issuance conditions; references to Tier 2 token classes mean ASX, Landholder, Business Property, and RWA classes — being the fungible investment classes that are issued only against consideration and only after Expansion Day; Tier 2 classes may not be issued before Expansion Day (entrenched clause 1.5(aa)). (g) JVPA means this Joint Venture Participation Agreement, being the supreme governing instrument of the Joint Venture, and includes this Agreement as amended from time to time in accordance with clause 10.1.

1.7A Dual Capacity of Members. Every Member of the Joint Venture holds that status in two concurrent and coterminous legal capacities, which together constitute the full legal relationship of the Member with the Joint Venture, with the Trustee, and with every other Member. (a) Beneficial Unit Holder capacity. Each Member is a Beneficial Unit Holder under the CJVM Hybrid Trust Declaration and the Sub-Trust A Deed. In this capacity the Member holds an equitable interest in the trust property administered by the Trustee, with the rights and protections afforded to a beneficiary under the Trustee Act 1936 (SA) and under the general law of trusts. The Member's liability in this capacity is strictly limited as provided in clause 10.9 of this Agreement, and the Member is not a co-owner of trust property, has no legal title to trust property, and cannot deal with trust property except through the

mechanisms provided in this Agreement, the Declaration, and the Sub-Trust Deeds. (b) Operational Member capacity. Each Member is a party to this Agreement and participates in the operational governance and management of the Joint Venture through the System. In this capacity the Member exercises the continuous individual operational capacity described in clause 4.1A(a) and the collective governance authority described in clause 4.1A(b), which together constitute the Members' day-to-day control of the Joint Venture for the purposes of clause 4.12(c) of this Agreement and section 9 of the Corporations Act 2001 (Cth). (c) Coterminous nature. The two capacities are held concurrently and are coterminous in scope and duration. A person acquires both capacities simultaneously on admission under clause 8.1 and loses both capacities simultaneously on exit under clause 8.2 or by operation of clause 8.3 or clause 8.4. No person may hold one capacity without the other, except in the transitional cases expressly provided for in clause 8.4 (inheritance) and clause 8.5 (Kids S-NFT). (d) No partnership arises. Neither capacity constitutes a partnership under the Partnership Act 1891 (SA), the Partnership Act of any other Australian State or Territory, or the general law of partnership. In particular: (i) the Member's Beneficial Unit Holder capacity is a trust-law relationship governed by the Trustee Act 1936 (SA) and the general law of trusts; it is not a partnership, and trust beneficiaries are not partners in each other's businesses; (ii) the Member's Operational Member capacity is a contractual relationship constituted by this Agreement as a multi-party contract; it is not a partnership, and parties to a multi-party contract are not partners unless they otherwise satisfy the statutory definition in section 1 of the Partnership Act 1891 (SA), which they do not, for the reasons set out in clause 10.9; and (iii) the two capacities held together do not aggregate to a partnership, because neither capacity confers mutual agency (each Member acts only on their own behalf, subject to clause 10.11), neither capacity creates joint and several liability between Members (clause 10.9), and neither capacity creates any relationship that satisfies the "carrying on a business in common with a view to profit" test in section 1 of the Partnership Act 1891 (SA) in the legal sense required by that provision, notwithstanding the factual description of common operational engagement in clause 1.8. (e) Members as an association — section 1 Partnership Act. The statutory definition of partnership in section 1 of the Partnership Act 1891 (SA) requires persons carrying on a business in common with a view to profit. The Joint Venture does not satisfy this definition, for the reasons in clause 10.9, because (i) its purpose is community stewardship of in-ground mineral assets and related community objects, not profit in the partnership-law sense, and (ii) it operates through a trust structure, not a business relationship among the Members. No partnership arises from the Members' association as Beneficial Unit Holders of the CJVM Hybrid Trust. (f) No joint venture legal entity. The Joint Venture is a commercial and factual description of the enterprise operated through the CJVM Hybrid Trust. It is not an incorporated joint venture, an unincorporated joint venture at general law creating tenancy-in-common interests, or a joint venture constituting a partnership under the rule in United Dominions Corporation Ltd v Brian Pty Ltd (1985) 157 CLR 1. The legal form of the enterprise is exclusively a trust, and Members' legal relationships with the enterprise and with each other are determined exclusively by trust law, by this Agreement, and by the Declaration and Sub-Trust Deeds. (g) No fiduciary duty between Members. No Member owes fiduciary duty to any other Member by virtue of the relationship constituted by this Agreement. Fiduciary duty in relation to the Joint Venture is owed exclusively by the Trustee to the Beneficial Unit Holders under the Trustee Act 1936 (SA), and by the Board to the Joint Venture under the Declaration. The Members are arm's-length co-parties to a multi-party contract, and their relationship is governed by the terms of this Agreement rather than by fiduciary principles. This clause does not affect the Members' duties to the First Nations Advisory Council, to Traditional Owners, or to each other under Part 7 of this Agreement, which are contractual obligations with specific entrenched status, not general fiduciary duties.

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1.8 Joint Venture Characterisation. The Members carry on the business of the Joint Venture in common with a view to mutual benefit, through a trust structure. This is a joint venture in substance but takes the legal form of a trust. Each Member contributes: (a) their membership consideration, which is applied to the establishment and maintenance of the Members' Management Infrastructure (including hardware, software, and cryptographic governance systems); (b) their active participation in governance through Members Polls and their Independence Vault Wallets; (c) their engagement in researching, identifying, and monitoring Members Asset Pool holdings; and (d) their collective direction of the trust's operations through the Members' proprietary cryptographic systems. The relationship between the Members is one of mutual obligation and governance, not passive investment. Members owe duties to each other and to the Joint Venture. The Trustee acts at the direction of the Members for all operational matters, with independent authority only for legal compliance, fiduciary obligations, and external representation. The arrangement falls outside the managed investment scheme definition in section 9 of the Corporations Act 2001 (Cth) because the Members exercise day-to-day control over the operations of the trust through their proprietary cryptographic systems, as analysed in detail in clause 4.12. Nothing in this clause invokes, incorporates, or relies upon the Partnership Act 1891 (SA), any equivalent partnership legislation in any Australian jurisdiction, or the general law of partnership; the application of such legislation and doctrine is expressly excluded under clause 10.9. The use of words such as "partnership", "partner", or "carrying on business in common" in this Agreement is descriptive of the factual character of the Members' common enterprise and does not create or invoke any legal relationship of partnership. The factual description of the Members' active engagement in a common enterprise is given for the purposes of the analysis under clause 4.12 and does not invoke the Partnership Act 1891 (SA), which does not apply to trust-based structures of this kind. The Members' relationship inter se is that of fellow Beneficial Unit Holders of the CJVM Hybrid Trust under general trust law, not of partners under partnership law. See further clause 1.7A.

PART 2 — THE MEMBERS' PROPRIETARY SMART CONTRACT SYSTEM

2.1 The Members own, build, operate, and control the proprietary cryptographic smart contract management and distribution system (the System) through which the Joint Venture's day-to-day operations are conducted. The System is the Members' operational instrument. The Declaration is the legal instrument. Where the System implements a rule approved by the Members through Members Poll, that rule has the same force as if it were written into the Declaration, and the Members must direct the Trustee to update the Declaration accordingly at the next practicable opportunity.

2.2 The System comprises: (a) The Approved Ledger Infrastructure: the technology-neutral distributed ledger, consensus network, and record-keeping system approved by the Board from time to time under this Agreement and the Declaration, being the constitutional source of truth for token records, governance outcomes, operational state, and Member acceptance records. The Approved Ledger Infrastructure includes the Members Consensus Network and may include any other system meeting the definition in clause 1.7. No single vendor, protocol, or third-party infrastructure is constitutionally mandated. (b) The Members Vault (the central Hybrid Trust Vault): the on-chain treasury and authorisation system controlled by the 3-of-Board multisignature mechanism, through which all token minting, transfer, cancellation, zone update, governance registry operations, and Member acceptance records are executed and stored. The Members Vault holds all trust assets and is the sole authority for minting and registry operations. The 3-of-Board multisignature requirement applies exclusively to the Members Vault. Until the Approved Ledger Infrastructure is operational, the Caretaker Trustee may perform Members Vault functions in the most practicable and fiduciary manner available, documented and auditable, in compliance with the Declaration and applicable law. (c) The Independence Vault

Wallets: each Member's individual cryptographic wallet, through which the Member exercises governance rights, views balances, initiates transfers, casts votes, accesses their acceptance record, and participates in the operations of the Joint Venture. Each Independence Vault Wallet is autonomously operated by the individual Member. No Board authorisation or multisignature approval is required for a Member to operate their own Independence Vault Wallet. The 3-of-Board multisignature requirement applies exclusively to the Members Vault (the central Hybrid Trust Vault), not to individual Independence Vault Wallets. (d) The smart contracts: the programmatic rules that encode the Joint Venture's operational requirements into executable blockchain logic, including token issuance gates, transfer restrictions, distribution calculations, per-hectare limits, class swap logic, governance poll mechanics, atomic acceptance-and-minting sequences, and the permanent embedding of cryptographic acceptance records into S-NFT token metadata at the moment of minting under clause 8.1A(c). (e) The web and application interfaces: the Member-facing platform at cogsaustralia.org and any approved mobile or desktop applications through which Members interact with the System, complete their registration, and execute their electronic acceptance of this Agreement. (f) Technology Implementation Note. The Members may implement the Approved Ledger Infrastructure using any technology approved by the Board, including as an early-phase or component implementation a Hyperledger Besu permissioned blockchain network or any successor or alternative protocol. The use of Hyperledger Besu as an implementation component does not alter the technology-neutral character of the Approved Ledger Infrastructure as defined in clause 1.7. The Members may resolve by Members Poll to migrate the System to any other Approved Ledger Infrastructure, including the Members Consensus Network, without amending this Agreement. (g) The public audit anchor: periodic state-root or checkpoint anchoring to Ethereum mainnet for public auditability of governance outcomes, vote result proofs, Member acceptance records, and major trust operations. (h) The Transitional Operational Infrastructure: from the date of execution until the Approved Ledger Infrastructure is fully operational, the Members' operational control is exercised through the Foundation's online cryptographic database system, which includes: (i) the web platform at cogsaustralia.org through which Members register, manage their Independence Vault Wallets, initiate governance actions, and access their records; (ii) a cryptographic hash record generated by the SHA-256 algorithm for every Member-initiated action, stored immutably in the operational database and independently verifiable; (iii) the Independence Vault Wallets, which are live and operational from the date of each Member's admission; and (iv) the governance poll mechanism through which Members propose, deliberate on, and vote on operational matters. The Transitional Operational Infrastructure is the Members' operational control system. It is not a placeholder, simulation, or interim arrangement pending the deployment of different technology. It is the first implementation of the Members' proprietary cryptographic governance system, designed to evolve seamlessly to the Approved Ledger Infrastructure without interruption to Member control. The deployment of blockchain technology is a technology upgrade, not the commencement of Member control.

2.3 The Members govern the System through Members Polls. No change to smart contract logic may be deployed without Member approval, except emergency security patches which must be ratified by Members Poll within 14 days. An emergency security patch means a change to smart contract logic that is strictly necessary to prevent, mitigate, or remediate (a) a security vulnerability that could allow unauthorised access to the Members Vault or Member wallets, (b) a critical operational failure that prevents Members from exercising their governance rights, or (c) a breach of applicable law requiring immediate technical remediation. An emergency security patch must not alter substantive behaviour of the System beyond what is strictly necessary to address the emergency, and must not change any voting mechanic, distribution calculation, token issuance rule, transfer restriction, or other operational rule not directly implicated by the emergency. The Board authorises deployment of an emergency

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security patch only upon written certification by the Board (or, where the urgency precludes a full Board resolution, by not fewer than two Directors) identifying the specific vulnerability, failure, or legal compliance breach being addressed; the patch, the certification, and a technical analysis must be published to the Members through the System within 24 hours of deployment. If a Members Poll does not ratify the patch within 14 days of publication, the patch must be rolled back to the extent technically feasible and any Member-initiated transactions executed under the patched logic are preserved, but the patch itself ceases to operate. The Board is accountable to the Members for any substantive change made under the guise of an emergency patch that is not ratified; persistent misuse of the emergency-patch mechanism is a material breach of this Agreement within the meaning of clause 8.3(a)(iv).

2.4 The System is the proprietary property of the Joint Venture. No third-party provider may acquire control over the System or create a dependency that prevents the Members from migrating to alternative infrastructure. Any agreement that would have such an effect is void (entrenched principle 1.5(p)).

PART 3 — IMPLEMENTING AND AMENDING THE RULES OF THE JOINT VENTURE

Part 3A — Implementing the Current Rules

3.1 This Agreement establishes the Members' authority to set, implement, and amend the operational rules of the Joint Venture. The Declaration and Sub-Trust Deeds currently record the initial rules as agreed by the Members at formation. The Members are responsible for implementing those rules in the System's smart contracts, faithfully, transparently, and verifiably.

3.2 The following rules from the Declaration and Deeds must be implemented in the System (non-exhaustive): (a) Token issuance gates and conditions (Declaration Schedule 9, Part A). (b) Transfer restrictions: fiat sale prohibition, soulbound S-NFT, P2P rules (gift/goods/services only, no fiat, 3-of-Board multisig), class-specific conditions. (c) Distribution calculations: 50/50 split, Donation Dividend Stream 50/25/25, proportional per-unit formula. (d) Per-hectare COG$ limits: 1,000 COG$/hectare for Landholder tokens. (e) Anti-capture cap: 1,000,000 Units per person or entity. (f) Governance voting: one-Member-one-vote, BNFT limited voting, Local Decision Votes with Residential Weighted Votes, Aggregate Unitholder Direction for proxy voting. (g) Lock periods: 12-month Stewardship Season on ASX COG$. (h) 3-of-Board multisignature for all Members Vault operations. (i) Electronic register of Beneficial Unit Holders. (j) Member acceptance records in accordance with clause 8.1A.

3.3 The Members must verify through independent technical audit that deployed smart contracts faithfully implement the current rules before the System processes any live transaction. First audit before the processing of any live transaction on or after Governance Foundation Day, other than the founding Member's own admission and those Member admissions strictly necessary to seed the audit sample. Annual audits thereafter and after any material upgrade.

Part 3B — Amending Operational Rules

3.4 The Members may amend any non-entrenched operational rule of the Joint Venture through their governance system. This is the Members' right as the operators of the Joint Venture. The Trustee has no veto over operational amendments that do not require the Trustee to breach applicable law.

3.5 Operational rules that Members may amend include (non-exhaustive): (a) Smart contract parameters not entrenched — voting periods, quorum thresholds above Declaration minimums,

deliberation periods, notification timeframes, interface design. (b) Operational procedures for token reservations, P2P transfers, class swaps, donation conversions. (c) Communications infrastructure and platform features. (d) Record keeping format, reporting frequency, transparency standards above Declaration minimums. (e) New portfolio company target selection for the Members Asset Pool. (f) ESG engagement strategy and priority targets. (g) Operational budget and administrative fund allocation within the Declaration framework.

3.6 Amendments are made by Members Poll: (a) Ordinary Resolution (simple majority) — routine operational changes, feature deployments, interface updates, advisory matters, new target selections. (b) Special Resolution (75% of S-NFT holders) — amendments to this Agreement; amendments to the Declaration; changes to smart contract architecture; Trustee appointment or removal; and any matter the Declaration reserves to Special Resolution.

3.7 No Member amendment may contravene an entrenched founding principle. Any purported smart contract change that would circumvent an entrenched principle is void. The System must include automated safeguards to prevent deployment of logic that would breach entrenched principles, to the extent technically feasible.

3.8 An operational amendment takes effect when: (a) the Members Poll result is declared; and (b) the amended smart contract logic is deployed to the System. The amendment is operative from the date of deployment, not from the date the Declaration is updated. The Trustee must update the Declaration and/or Deeds to reflect the amendment within 30 days. The Declaration update is a recording function, not an approval function.

3.9 If the System's smart contract logic is found to be inconsistent with this Agreement or the entrenched founding principles, this Agreement prevails and the Members must correct the System. If the Declaration is found to be inconsistent with a valid Members Poll outcome recorded in the System, the Members Poll outcome prevails and the Trustee must amend the Declaration accordingly.

PART 4 — MEMBER OPERATIONS

4.1 Subject to the entrenched foundation and applicable law, the Members have full operational authority over the Joint Venture. The Members collectively decide how the trust is run, how its smart contract systems are designed, how its resources are managed, how its governance is conducted, and how its records are kept. Without limiting the generality of this authority, the Members' day-to-day operational functions include: identifying potential assets for the Members Asset Pool; researching future acquisitions; monitoring and engaging with current operations of existing shareholdings; developing, building, testing, and operating the blockchain and cryptographic governance infrastructure; operating and evolving the Independence Vault Wallet system; managing all internal communications; and all other functions necessary for the conduct of the Joint Venture. These functions are exercised by the Members, not the Trustee. From execution, these functions are performed through the Members' online cryptographic database and SHA-256 hash record system, which constitutes the Members' operational infrastructure and is designed to seamlessly transfer to the proprietary blockchain when physical infrastructure is deployed. The Trustee must maintain and publish to Members a quarterly operational activity log demonstrating: (a) the number of Member-initiated governance proposals submitted through the System; (b) the number of Members Polls conducted and their outcomes; (c) the number of Member-initiated transfers, reservations, and token operations processed; (d) the aggregate number of Independence Vault Wallet sessions in the period; and (e) the SHA-256 hash record count for the period; (f) the number of operational directions issued by Members to the Trustee through the System during the period, and the number executed by the Trustee under the deemed-approval mechanism in clause 5.1(g); and (g) a narrative summary of

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Trustee actions taken during the period, identifying for each material action whether it was taken pursuant to a Member direction, a Members Poll resolution, an entrenched founding principle, or Trustee discretion within Trustee Functions. The log and underlying evidence are compiled and preserved in accordance with the Schedule to this Agreement (Operational Control Evidence Requirements). This log is evidence of the Members' ongoing exercise of day-to-day operational control.

4.1A Day-to-Day Operational Control. The Members exercise day-to-day control over the operations of the Joint Venture through two distinct and complementary mechanisms: (a) Continuous Individual Operational Capacity — each Member, through their Independence Vault Wallet, autonomously and without Trustee involvement: views their holdings and the state of the Members Asset Pool in real time; initiates P2P transfers of eligible tokens; submits governance proposals at any time; monitors and engages with portfolio company ESG performance; accesses the complete governance record and SHA-256 hash attestations; manages their distribution election preferences; and exercises all other functions available through the System. These functions are exercised individually, continuously, and without requiring any other Member's or the Trustee's permission or participation. (b) Collective Governance Authority — Members collectively, through Members Polls: direct the investment mandate of the Members Asset Pool; set and amend the operational rules of the Joint Venture; appoint and remove the Trustee; approve or reject smart contract deployments; determine ESG engagement strategy; and make all other operational decisions of the Joint Venture. The combination of continuous individual operational capacity and collective governance authority constitutes the Members' day-to-day control. This control is qualitatively different from the right to be consulted or to give directions. Members do not instruct the Trustee to operate the scheme on their behalf. Members operate the Joint Venture directly through their own proprietary systems. The Trustee performs only the limited security authentication and legal compliance functions defined in Part 5.

4.2 Governance. Members exercise all governance authority through Members Polls via the System. S-NFT holders hold national governance authority (one person, one vote). Kids S-NFT holders carry a proxy vote exercised by parent or guardian. B-NFT holders vote only on matters expressly reserved to them by the Declaration, being (a) the appointment, removal, and replacement of the Trustee or Caretaker Trustee; and (b) amendments to the Trustee governance structure that directly affect the rights of B-NFT holders as a class. Members propose, hold, govern, and conclude their own meetings, polls, proposals, and communications. The Trustee does not convene or control Member governance proceedings.

4.3 Trustee Appointment and Removal. Members appoint, remove, and replace the Trustee by Special Resolution (75%). The Trustee serves at the direction of the Members. This is the defining characteristic of the Joint Venture.

4.4 Investment Direction. Members direct the Members Asset Pool investment mandate. This includes target company selection, ESG engagement strategy, and proxy voting at portfolio company meetings through the Aggregate Unitholder Direction mechanism (Declaration clause 13A). The Trustee executes investment instructions; the Trustee does not exercise independent investment discretion.

4.5 Resource Management. Members manage the Members Asset Pool through the System. Token reservations, P2P transfers, class swaps, donation conversions, and all token-layer operations are Member-initiated and Member-controlled.

4.6 Distribution Verification. Members verify distribution calculations through the System. The Trustee must publish distribution calculations not less than 10 business days before processing. Members have 5 business days to raise discrepancies. If a Member raises a discrepancy within that period, the Trustee must halt processing of the affected distribution and notify all Members through

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the System; the discrepancy is resolved under the dispute resolution process in Part 9, with processing resuming only after the discrepancy is resolved or determined to be unfounded.

4.7 Communications. Members operate their own communications infrastructure through the Foundation platform. The Trustee may publish compliance notices but does not control or moderate Member-to-Member communications except where required by law.

4.8 Record Keeping. The System is the Members' primary operational record. The Trustee maintains the legal register as a parallel obligation. In the event of discrepancy, the legal register prevails pending correction, but the blockchain record, together with its SHA-256 hash attestation and any state-root anchor, is prima facie evidence of the Member-initiated transaction within the meaning of the Evidence Act 1929 (SA), and is admissible in proceedings as a business record of the Joint Venture. A party relying on the record may produce a printout or electronic extract together with a certificate of the Trustee, or an auditor appointed under clause 6.7A, attesting to the provenance of the record, the method of its generation, and the integrity of the SHA-256 hash chain. Such certificate is sufficient evidence of the matters it certifies unless contradicted by evidence that establishes, on the balance of probabilities, a defect in provenance or hash integrity.

4.9 Token Characterisation and Internal Use. Fungible digital COG$ Tokens of investment classes (including ASX COG$, Landholder COG$, Business Property COG$, and RWA COG$) are acknowledged to be financial products within the meaning of ASIC Information Sheet 225. These classes are not issued, sold, or exchanged for goods or services until after Expansion Day. From Expansion Day, all applicable disclosure obligations must be satisfied before any Tier 2 token issuance. Community COG$ (Class C) are issued from Governance Foundation Day as an immutable record of barter transactions for goods and services between Members and as a means of recognising contributed efforts, stewardship activities, and other Member-benefit contributions. The issuance and operation of Class C from Governance Foundation Day also serves to validate the operational function of the Members Vault and the Members' cryptographic governance infrastructure before Expansion Day, when investment-class tokens are to be distributed. Because the Joint Venture is not a managed investment scheme and no COG$ Token of any class may leave the Joint Venture by secondary sale, fiat redemption, exchange listing, or any other means, the classification of tokens as financial products under INFO 225 has no bearing on the use of tokens internally by the Joint Venture. The tokens function as internal governance, participation, and record-keeping instruments within a closed joint venture system. The Foundation draws a clear distinction between two separate regulatory inquiries: (a) whether any individual COG$ Token constitutes a financial product within the meaning of Chapter 7 of the Corporations Act — a product characterisation question that may be relevant from Expansion Day for Tier 2 tokens; and (b) whether the CJVM Hybrid Trust is a managed investment scheme within the meaning of section 9 — a scheme characterisation question that depends on the structure and operation of the Joint Venture as a whole. The Foundation's acknowledgment that Tier 2 tokens may constitute financial products under INFO 225 does not constitute or imply any acknowledgment that the CJVM Hybrid Trust is a managed investment scheme. These are legally independent questions. A multi-party association operating through a trust structure may use financial products as internal instruments without the Joint Venture itself becoming an MIS. The relevant question for section 9 is not what the tokens are, but whether the members have day-to-day control. The Members do. For the avoidance of doubt, Community COG$ (Class C) is a Member-allocation token class that functions as an immutable record of barter transactions for goods and services between Members, allocated by the Trustee as consideration for approved contributed efforts, services, stewardship activities, and other Member-benefit contributions. Class C confers no Beneficial Unit, no Sub-Trust B income unit, no entitlement to the Beneficiary Distribution Stream, no entitlement to the Donation Dividend Stream, and no governance right of any kind (no national vote, no Local Decision Vote, and

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no weighted affected-zone vote). Class C Units may be transferred P2P only where expressly permitted by class rules and always subject to the prohibition on fiat sale, fiat redemption, or exchange listing entrenched under clause 1.5(i). Governance under this Agreement attaches exclusively to the NFT classes (S-NFT national vote, kS-NFT proxy national vote, B-NFT limited Trustee-structure vote) and to the zone-affected classes (Landholder / Lh, Business Property / BP, and Resident / Lr weighted Local Decision Votes), not to Class C. The entrenched social justice mechanism in Declaration cl 35(q) attaches exclusively to the Personal S-NFT COG$ and the Kids S-NFT COG$.

4.9A Tier 2 Issuance Regulatory Preconditions. Before the first issuance of any Tier 2 token under this Agreement, and before each subsequent issuance of a Tier 2 token class not previously issued, the Foundation must satisfy the regulatory precondition framework in this clause. The framework is principles-based rather than rule-specific. The Australian regulatory landscape for tokenised assets and digital financial products continues to develop, including through the commencement of the Corporations Amendment (Digital Assets Framework) Act 2026 on 9 April 2027, the finalisation of minimum standards for Digital Asset Platform and Tokenised Custody Platform operators by the Australian Securities and Investments Commission, and the ongoing evolution of the managed investment scheme framework. The specific applicable rules must be determined by the regulatory state in force at the time of issuance, and the Foundation is not bound to the regulatory framework described at the time this Agreement is entered into. (a) Regulatory assessment. Before any Tier 2 issuance, the Board must commission and receive a written regulatory assessment from Australian legal advisers qualified to advise on financial services law, addressing at a minimum: (i) the applicable regulatory framework governing the intended Tier 2 token class at the time of issuance, including the Corporations Act 2001 (Cth) and any successor or amending legislation, ASIC regulatory guidance and legislative instruments in force, and any specific digital asset, crypto asset, or tokenised asset regulatory regime that has commenced operation; (ii) whether the intended Tier 2 token class constitutes a financial product within the meaning of Chapter 7 of the Corporations Act 2001 (Cth) or any successor framework; (iii) whether the issuance requires an Australian Financial Services Licence under section 911A of the Corporations Act 2001 (Cth) or any successor licensing regime, or whether any specific exemption, class order, legislative instrument, or regulatory sandbox relief is available and appropriate; (iv) whether the issuance requires disclosure under Part 7.9 of the Corporations Act 2001 (Cth) (or any successor disclosure regime) and the specific form of disclosure required; (v) whether Design and Distribution Obligations under Part 7.8A of the Corporations Act 2001 (Cth) (or any successor regime) apply and, if so, the required target market determination; and (vi) any other regulatory requirements that apply to the intended issuance under the law in force at the time, including but not limited to anti-money-laundering and counter-terrorism-financing obligations, taxation obligations, and foreign investment obligations; and (vii) whether the Members Vault or any component of the System constitutes a Digital Asset Platform or a Tokenised Custody Platform within the meaning of the Corporations Act 2001 (Cth) as amended by the Corporations Amendment (Digital Assets Framework) Act 2026, and the specific Australian Financial Services Licence authorisation, platform guide, platform voting policy, platform rules, custody standards, and any other obligations required under that Act and any ASIC minimum standards made under it. (b) Compliance implementation. The Foundation must implement all regulatory requirements identified in the assessment under paragraph (a) before any Tier 2 issuance. Where the assessment identifies a requirement for a licence, authorisation, registration, exemption, or relief instrument, the Foundation must obtain that instrument from the relevant regulator, or enter into a contractual arrangement with an appropriately licensed third party that permits the lawful issuance, before the issuance occurs. (c) Independent review. The Board must obtain independent written confirmation from a second Australian legal adviser, not involved in preparing the assessment under paragraph (a), that the

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Foundation's intended compliance framework is adequate for the intended issuance under the regulatory state in force at the time. The independent review may rely on the assessment in paragraph (a) but must address it critically and identify any matters on which the reviewer disagrees or qualifies the primary assessment. (d) Members Poll authorisation. No Tier 2 issuance may proceed without Special Resolution of the Members authorising the specific issuance. For the first issuance of any Tier 2 token class, Special Resolution is required. For subsequent issuances of the same Tier 2 token class, Board authorisation is sufficient provided the Board first confirms in writing that (I) the existing compliance framework remains adequate under the regulatory state in force at the time of the subsequent issuance, and (II) no material change in the applicable regulatory framework has occurred since the most recent regulatory assessment under paragraph (a); where either condition is not satisfied, a further Special Resolution is required. The Special Resolution proposal for a first issuance must include: (i) the regulatory assessment under paragraph (a); (ii) the independent review under paragraph (c); (iii) a plain-language summary of the regulatory obligations the Foundation will assume by proceeding with the issuance; (iv) a plain-language summary of the risks to Members and to the Foundation if regulatory compliance is not successfully maintained; and (v) the specific Tier 2 token class proposed for issuance, the proposed terms of issuance, and the proposed class of recipients. (e) Ongoing compliance. Following a Tier 2 issuance, the Foundation must maintain compliance with all regulatory obligations identified in the assessment under paragraph (a), and must commission an updated regulatory assessment at least every 24 months, or whenever a material change in the applicable regulatory framework comes into force. Where an updated assessment identifies new obligations or material changes to existing obligations, the Foundation must implement the changes within a reasonable period as determined in consultation with its legal advisers. (f) No waiver. No resolution of the Members or the Board may waive, accelerate, or remove the preconditions in paragraphs (a) to (d) in relation to a first issuance of a Tier 2 token class, or in relation to any Tier 2 issuance that occurs after a material change in the applicable regulatory framework. The preconditions operate as a gate against Tier 2 issuance and are themselves a contractual entrenchment of the Foundation's commitment to regulatory compliance, operating in addition to and not in substitution for the entrenched Expansion Day gate under clause 1.5(aa) and the entrenchment of this framework under clause 1.5(ag). (g) Relationship to MIS defence. For the avoidance of doubt, compliance with the preconditions in this clause does not constitute an acknowledgement that the CJVM Hybrid Trust is a managed investment scheme for the purposes of section 9 of the Corporations Act 2001 (Cth). The Foundation's position on MIS characterisation is set out in clause 4.12 and is independent of the product-level regulatory compliance addressed by this clause. A Tier 2 token may be a financial product requiring specific compliance without the Joint Venture being an MIS, and the two characterisations are legally and operationally distinct. (h) Records. The Foundation must maintain on the Approved Ledger Infrastructure a permanent record of each regulatory assessment, independent review, and Members Poll resolution relied on for a Tier 2 issuance, together with a summary of the regulatory instruments and compliance steps relied on at the time of issuance. The record must be accessible to Members through the System and must be preserved as part of the cryptographically-secured governance record of the Joint Venture.

4.10 Administration and Infrastructure Fund Surplus. The membership consideration paid by each Member is applied to the setup and maintenance of the Members' Management Infrastructure, including hardware, software, and cryptographic governance systems. The Trustee is obliged to apply any unused administrative and infrastructure funds to purchase assets on behalf of the Members through Sub-Trust A, not to redistribute surplus funds back to the Members. This obligation is mandatory and reflects the non-redeemable, non-distributable nature of the Joint Venture's operating funds.

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4.11 Member Participation Obligations. Each Member acknowledges that the Joint Venture is not a passive investment. By accepting this Agreement, each Member undertakes to: (a) maintain their Independence Vault Wallet in active status by accessing the System at least once in any rolling 12-month period; (b) participate in the governance of the Joint Venture by engaging with Members Polls, governance proposals, and ESG engagement activities to the extent reasonably practicable; (c) contribute to the research, identification, and monitoring of Members Asset Pool holdings by accessing the portfolio information published through the System, to the extent reasonably practicable; and (d) comply with the operational rules of the Joint Venture as set and amended by the Members through the System. The Members' active participation is fundamental to the day-to-day operation of the Joint Venture and to its characterisation as a non-managed-investment-scheme Joint Venture under clause 4.12. Accordingly, no Member may remain in a dormant state indefinitely. A Member who fails to access the System for a continuous period of 12 months is classified as a Dormant Member. A Dormant Member retains all rights under this Agreement, including the entrenched one-Member-one-vote right under clause 1.5(d), and retains all Sub-Trust B income unit entitlements. Dormant Member classification exists solely to calibrate quorum calculations under clause 6.5 so that the governance of the Joint Venture is not held hostage to unresponsive Members. For the purposes of quorum only, Dormant Members are excluded from the denominator under clause 6.5. For the purposes of voting-percentage calculations under clause 6.5A, a Dormant Member is counted only if they cast a valid vote in the relevant Members Poll. Dormant status is cured when the Member next accesses the System and participates in at least one Members Poll by casting a valid vote. Following cure, the Member must participate in at least one further Members Poll before being eligible to enter Dormant Member status again; a Member who fails to cast a valid vote in the next Members Poll following their return from Dormant status and then ceases to access the System resumes accruing the 12-month Dormant-classification period from that point. A Member approaching Dormant status must receive written notice at the 9-month mark through the notices channel in clause 10.13. A Member who anticipates being unable to participate for personal reasons — including but not limited to illness, bereavement, incarceration, remote service, extended travel, or caring responsibilities — may apply to the Trustee in writing for Special Consideration, and the Trustee must grant an extension of the dormancy classification period on reasonable evidence of genuine personal circumstances, for such period as is fair in the circumstances. The Trustee must publish through the System a summary of the number of Special Consideration extensions granted in each quarter, without identifying the Members concerned. A Member who remains Dormant beyond 12 months without Special Consideration remains a Member on Dormant status and retains all rights and entitlements; the Trustee must undertake a reasonable welfare follow-up through the Member's registered contact details and record the outcome as part of the quarterly operational log under clause 4.1. This clause does not create a ground for expulsion and may not be used to diminish any Member's beneficial rights.

4.12 Not a Managed Investment Scheme. The Members and the Trustee acknowledge and declare that the CJVM Hybrid Trust does not satisfy the definition of a managed investment scheme in section 9 of the Corporations Act 2001 (Cth), applying each limb of the statutory test. (a) Contributions limb. Members contribute membership consideration to acquire a Beneficial Unit and corresponding COG$ Token. The consideration is not an investment contribution to a collective investment product — it is payment for an operational participation right in the Joint Venture, substantially applied to the setup and maintenance of the Members' Management Infrastructure under clause 4.10. Any investment component attached to a class is incidental to the governance and membership function of that class. (b) Pooling and common enterprise limb. The Members Asset Pool is a permanent, non-disposable collective community asset (entrenched under clause 1.5(m)). It is not a fund managed to produce financial benefit for contributors. The Foundation's purpose is the community stewardship of

in-ground mineral assets and ESG engagement with portfolio companies, not the pooling of capital to produce financial returns for contributors. Distributions are formula-driven and the Trustee has no discretion to vary them. (c) Day-to-day control limb. The Members exercise day-to-day control over the operations of the trust through: (i) continuous individual operational capacity through each Member's Independence Vault Wallet; (ii) collective governance authority through Members Polls; (iii) the System, built, maintained, and operated by the Members; (iv) the right to remove the Trustee by Special Resolution at any time; (v) the right to direct the investment mandate, ESG engagement strategy, and proxy voting through the Aggregate Unitholder Direction under Declaration clause 13A; and (vi) the mandatory, non-discretionary, formula-driven distribution structure that leaves no operational discretion to the Trustee. The Trustee performs only the limited Trustee Functions defined in Part 5. The Members are not passive recipients of returns managed by an operator. They are the operators of the Joint Venture. The Foundation's position on day-to-day control is not a decentralisation claim. The Foundation, the Board, the FNAC, and the Trustee are identifiable parties with specific and limited roles under this Agreement and the Declaration. None of those roles constitutes day-to-day control of the Joint Venture: the Foundation is a corporate coordinator without operational authority over trust property; the Board exercises the multisignature authentication function only; the FNAC exercises endorsement functions only in relation to First Nations matters; and the Trustee's functions are limited to the Trustee Functions in Part 5. Day-to-day control of the Joint Venture is exercised by the Members collectively through the System and individually through their Independence Vault Wallets, as described in clause 4.1A and evidenced by the quarterly operational activity log under clause 4.1. The identifiable-party-influence test advanced by the Australian Securities and Investments Commission concerns protocol design influence by parties who claim decentralisation; the Foundation's structure assigns specific limited roles to identifiable parties while locating operational control in the Members, and the two analyses are distinct. On each limb of the section 9 test, the CJVM Hybrid Trust falls outside the definition.

PART 5 — THE TRUSTEE'S LIMITED ROLE

5.1 The Trustee is the key-holder of the trust safe, not the operator of the trust. The Trustee's functions are limited to: (a) Legal Ownership — holding legal title to trust property on behalf of the Members. (b) Fiduciary Duty — acting honestly, in good faith, and in the Members' best interests under the Trustee Act 1936 (SA). (c) Legal Representation — entering external contracts, executing legal documents, engaging professional advisers on behalf of the trust. (d) Regulatory Compliance — ensuring compliance with applicable law, including (i) anti-money-laundering and counter-terrorism-financing obligations under the Anti-Money Laundering and Counter-Terrorism Financing Act 2006 (Cth) as amended, including Virtual Asset Service Provider registration (formerly Digital Currency Exchange registration) with the Australian Transaction Reports and Analysis Centre (AUSTRAC) where the Foundation's activities constitute designated services within the meaning of that Act; (ii) the Privacy Act 1988 (Cth) and the Australian Privacy Principles; (iii) the Trustee Act 1936 (SA); (iv) the Income Tax Assessment Act 1997 (Cth); (v) the Corporations Act 2001 (Cth) as amended by the Corporations Amendment (Digital Assets Framework) Act 2026, including any Australian Financial Services Licence obligation arising in connection with the operation of the Members Vault as a Digital Asset Platform or Tokenised Custody Platform; and (vi) all other applicable Australian law. The Corporations Act applies to the Trustee in its general trustee and corporate governance capacity only. The CJVM Hybrid Trust is not a managed investment scheme and the Chapter 5C regime does not apply. (e) Fiat Processing — receiving and directing fiat currency, processing distributions within 60 days. (f) Defence — defending the trust in legal proceedings and responding to regulatory inquiries. (g) Multisignature Execution — Security Authentication Function.

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The Trustee's role in operating the 3-of-Board multisignature keys for the Members Vault is a security authentication function. The multisignature mechanism authenticates that a valid Member request has been received and verifies the integrity of the transaction. It does not confer decision-making authority on the Trustee. The Trustee must apply its cryptographic authorisation to any valid Member request within 5 business days. The Trustee has no discretion to withhold authorisation except where execution would require the Trustee to breach a specific provision of applicable law, identified in writing within those 5 business days. If the Trustee fails to apply its cryptographic authorisation within 5 business days and has not provided written reasons identifying the specific legal provision that would be breached, the Member request is deemed approved and the System must execute the operation automatically without Trustee authorisation. The deemed-approval mechanism must be implemented in the smart contract logic of the Members Vault, or in the Transitional Operational Infrastructure during the pre-blockchain period, such that Member operations are not structurally dependent on the Trustee's active participation beyond the authentication function. For the avoidance of doubt, the following Member operations require no Board multisignature authorisation and no Trustee participation of any kind: (a) casting votes in Members Polls; (b) submitting governance proposals; (c) viewing wallet balances and transaction history; (d) communicating with other Members through the System; (e) accessing governance records and SHA-256 hash attestations; (f) electing distribution preferences; and (g) nominating heirs. These are autonomous Member functions exercised through each Member's Independence Vault Wallet without any Trustee involvement. (h) Declaration Maintenance — maintaining the Declaration and Sub-Trust Deeds as the legal record of the Members' Joint Venture, updating them as directed by the Members through Members Polls, and ensuring the Declaration accurately reflects the current rules of the Joint Venture as determined by the Members.(i) International Sister Foundation Execution — executing, amending, performing, and (where authorised) terminating Sister Foundation Protocols with sister community foundations under Part 12 of this Agreement, and executing the Technology and Governance Model Licence Agreement under clause 12.5, in each case only as authorised by Members Poll under Part 12 and only within the peer alliance principle, ring-fencing safeguards, and other requirements of that Part. This function does not expand Trustee authority beyond Part 12 and does not authorise the Trustee to act unilaterally in international sister foundation matters.

5.2 The Trustee must not: (a) Make investment decisions independently of Member direction. (b) Convene, control, or interfere with Member governance proceedings. (c) Exercise independent discretion over the System, smart contract logic, token operations, or resource management. (d) Withhold, delay, or condition the execution of a valid Members Poll result except where compliance would breach applicable law, with written reasons provided within 5 business days. If the Trustee fails to provide written reasons within 5 business days identifying the specific legal provision that would be breached by implementation, the Members Poll result is deemed approved for implementation and, to the extent technically feasible, the System must execute the operation automatically without further Trustee authorisation. The deemed-approval mechanism in this paragraph parallels and is construed consistently with the deemed-approval mechanism in clause 5.1(g). (e) Represent to any third party that the CJVM Hybrid Trust is a managed investment scheme. (f) Refuse or delay multisignature execution of a valid Member request without written reasons within 5 business days. (g) Refuse to update the Declaration or Deeds when directed by a valid Members Poll outcome, except where the amendment would contravene an entrenched founding principle established in Part 1 of this Agreement or would require the Trustee to breach applicable law.

5.3 The Trustee must publish to Members through the System: quarterly financial reports; annual audited accounts; all material regulatory correspondence; the quarterly Operational Control Evidence

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compilation required by the Schedule to this Agreement; and real-time notification of any material event affecting trust property.

5.4 Members may remove the Trustee by Special Resolution (75%) and appoint a successor within 60 days. The Trustee serves at the direction of the Members.

5.5 Fiduciary Duty Conflict. Where the Trustee considers that executing a valid Members Poll direction or a multisignature request would require the Trustee to breach its fiduciary duty under the Trustee Act 1936 (SA) or applicable equitable principles, the Trustee must: (a) identify the conflict in writing to the Members within 5 business days, specifying the fiduciary obligation engaged and the manner in which compliance with the direction would breach it; (b) engage in good faith consultation with the Members to seek resolution, including exploring alternative means of achieving the Members' objective without breaching fiduciary duty; (c) if the conflict cannot be resolved within 14 days, refer the matter to the Supreme Court of South Australia for directions under the Trustee Act 1936 (SA); and (d) pending resolution, preserve the status quo and take no irreversible action. The Trustee must not use fiduciary duty as a pretext to delay, obstruct, or refuse to implement valid Member directions where no genuine fiduciary conflict exists. Invocation of this clause within the 5-business-day window in clause 5.1(g) or clause 5.2(d) suspends the operation of the deemed-approval mechanism in those clauses pending resolution under this clause. Pending resolution, the Trustee must notify the Members through the notices channel under clause 10.13 within 24 hours of invocation. A pattern of unjustified refusals constitutes grounds for removal under clause 5.4.

PART 6 — MEMBERS POLLS

6.1 Members propose, hold, govern, and conclude their own meetings, polls, proposals, and communications through the System. The Trustee does not convene, chair, or control these proceedings. Members may submit governance proposals at any time. There is no restriction on the frequency, timing, or subject matter of Members Polls, other than the deliberation period in clause 6.3. The Members' governance authority is continuous and self-initiating — it is not convened, scheduled, or triggered by the Trustee.

6.2 Not fewer than 10 S-NFT holder Members may initiate a Members Poll by submitting a proposal through the System. Founding-period carve-out: during the period from execution of this Agreement until the admission of the 10th S-NFT holder Member, the founding Caretaker Trustee may identify and correct clerical, typographical, or cross-reference errors in this Agreement by signed written notice to the Foundation, provided that (a) no such correction may alter any entrenched founding principle in clause 1.5 or any substantive right or obligation; (b) each correction is logged in the System as a Founding-Period Correction with a time-stamp, the text removed, and the text inserted; and (c) the corrections are ratified by the first Ordinary Resolution Members Poll held after the 10th Member is admitted. A Founding-Period Correction that is not ratified is void ab initio and the original text stands. Any substantive amendment in the founding period beyond clerical correction requires a Members Poll under Part 6 and cannot be effected until the initiation threshold is met. For the avoidance of doubt, any amendment required by a final order of the Supreme Court of South Australia, or by a statutory obligation that would otherwise be breached, may be made during the founding period by signed written notice of the founding Caretaker Trustee to the Foundation, accompanied by written legal advice confirming the necessity of the amendment, with the same ratification requirement as a Founding-Period Correction under this clause. Once the Joint Venture has more than 1,000 S-NFT holder Members, the initiation threshold rises to the greater of 10 S-NFT holder Members or 1% of S-NFT holder Members. The proposal must include: a clear description; the resolution type (Ordinary or Special); and a proposed voting period of not less than 7 days.

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6.3 Every proposal must have a deliberation period of not less than 7 days before voting opens. For urgent matters, the deliberation period may be reduced to 48 hours if the initiating Members (being not fewer than 20% of S-NFT holder Members) certify urgency at the time of submission through the System, specifying the grounds for urgency. The auditor appointed under clause 6.7A reviews urgency certification post-hoc and may order reconsideration or a re-run of the Members Poll if urgency was improperly certified.

6.4 Voting is through each Member's Independence Vault Wallet. One eligible Member, one vote. Each vote is recorded on the Approved Ledger Infrastructure with cryptographic integrity guarantees and state-root anchoring to a public ledger where practicable. Votes may be changed before close.

6.5 Quorum. The quorum requirement for a Members Poll depends on the resolution type. (a) Ordinary Resolution quorum: the greater of 10 S-NFT holder Members or 50% of S-NFT holder Members. (b) Special Resolution quorum: the greater of 10 S-NFT holder Members or 75% of S-NFT holder Members. (c) Denominator: for the 50% and 75% calculations, the denominator is the total number of S-NFT holder Members excluding Dormant Members classified under clause 4.11. (d) Minimum Member floor: no Members Poll may be held in the Joint Venture while fewer than 10 S-NFT holder Members are admitted; during that founding period the founding-period mechanism in clause 6.2 applies. (e) Rationale: the heightened quorum reflects the Members' fundamental obligation under clause 4.11 to participate in the day-to-day management of the Joint Venture and is facilitated by the System's electronic and cryptographic voting infrastructure, which allows all active Members to vote at any time and from any location through their Independence Vault Wallets. (f) Dissolution. The dissolution or winding up of the CJVM Hybrid Trust is a matter requiring Special Resolution, is quorate under paragraph (b), and must pass at the Special Resolution voting threshold under clause 6.5A.

6.5A Voting Thresholds. Unless expressly stated otherwise, all voting percentages in this Agreement are calculated as a percentage of S-NFT holder Members who cast a valid vote in the relevant Members Poll, provided quorum under clause 6.5 is achieved. A Special Resolution means a resolution passed by not less than 75% of the valid votes cast by S-NFT holder Members in a quorate Members Poll. An Ordinary Resolution means a resolution passed by more than 50% of the valid votes cast by S-NFT holder Members in a Members Poll that is quorate under clause 6.5(a). A Special Resolution is quorate under clause 6.5(b). Dissolution of the CJVM Hybrid Trust is a Special Resolution matter under clause 6.5(f) and is subject to the Special Resolution quorum and voting threshold. Kids S-NFT proxy votes are counted only on matters on which Kids S-NFT holders are eligible to vote. B-NFT votes are counted only on matters on which B-NFT holders are eligible to vote under clause 4.2 and the Declaration. For the avoidance of doubt, Dormant Members under clause 4.11 are excluded from the denominator for quorum calculations, and are counted in the denominator for voting-percentage calculations only if they cast a valid vote.

6.6 Results are calculated automatically, published immediately, and are binding. The Trustee must implement within 10 business days, or such period as the resolution specifies, but implementation must not commence until the 7-day challenge window in clause 6.7 has closed without a challenge being lodged, or (where a challenge is lodged) until the challenge is resolved under clauses 6.7 and 6.7A. Where the result requires a Declaration amendment, the Trustee must execute that amendment within 30 days of implementation becoming final.

6.7 Challenges to Members Poll Results. A Member may challenge a Members Poll result within 7 days of declaration. Challenges on grounds of (a) technical failure of the System or (b) ineligible votes being counted are determined by an independent technical auditor appointed under clause 6.7A, whose decision is binding on the Members and may only be set aside by order of the Supreme Court of South

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Australia. Challenges on grounds of fraud are determined by the dispute resolution process in Part 9 and, if necessary, the Supreme Court of South Australia. Pending determination of a challenge, the challenged result remains in effect unless the Board, on the recommendation of the auditor, orders a stay.

6.7A Auditor. The Board shall appoint a panel of not fewer than three independent technical auditors, each with demonstrated expertise in distributed-ledger systems and governance-record review. Panel members may be appointed from any jurisdiction, and the Board is expressly encouraged to include auditors domiciled outside Australia to maximise independence from the Australian Member pool and to preserve the eligibility of Australians to be Members without being excluded by virtue of professional qualifications. Panel members must be independent of the Foundation, the Trustee, and any Board Director. For Australian-domiciled panel members, the member must hold no COG$ Tokens, or fewer than 1,000 COG$ Tokens in aggregate if any; this holding restriction does not apply to panel members domiciled outside Australia, who are treated as independent by virtue of their domicile. The Foundation bears the cost of routine and good-faith challenge audits. An auditor may order a Member raising a frivolous or vexatious challenge to bear the cost of the challenge. Where personal information of Members is disclosed to an auditor outside Australia, the Foundation must take reasonable steps in accordance with Australian Privacy Principle 8 to ensure the auditor handles that information consistently with the Australian Privacy Principles. An auditor's determination under clause 6.7 is contractually binding on the Members and the Trustee under the law of South Australia regardless of the auditor's jurisdiction of domicile. The auditor's determination must be issued in writing, with reasons, and lodged with the Foundation through the System. Once lodged, the determination is deemed a contractual term agreed between the Members and the Trustee for the purposes of enforcement in the Supreme Court of South Australia. On an application by a party under clause 9.4, the Court may give effect to the determination as if it were a judgment or order, without re-examining the merits of the auditor's findings, except on the grounds of manifest error of law, procedural unfairness, or fraud. The Foundation must preserve the original written determination, the reasons, and any underlying audit workpapers for not less than 7 years from the date of determination. The Board must publish the panel roster through the System and must not remove an auditor except for cause.

PART 7 — FIRST NATIONS PARTICIPATION

7.1 Standing of the FNAC. The First Nations Advisory Council (FNAC) is a standing advisory body of the Joint Venture. Its role, composition, and standing are entrenched founding principles of this Agreement under clause 1.5(k), reflecting and giving effect to Declaration clauses 33A–33D and clause 35(l)–(m). The Members acknowledge the FNAC as the primary institutional voice for First Nations interests within the Joint Venture.

7.2 Free, Prior and Informed Consent. Neither the Members, the Board, nor the Trustee may direct, authorise, or execute any action requiring Free, Prior and Informed Consent (FPIC) under the United Nations Declaration on the Rights of Indigenous Peoples or applicable Australian law without first obtaining FPIC in accordance with the Declaration. A Members Poll does not override the FPIC requirement. The Trustee must not execute any such action until FPIC is evidenced in writing to the Members through the System. This obligation attaches to all Joint Venture action regardless of origin.

7.3 ICIP Protection. The System must include technical and procedural safeguards against the unauthorised use, reproduction, or appropriation of Indigenous Cultural and Intellectual Property (ICIP). No Member, Board Director, Trustee, or Foundation officer may use ICIP without the prior written authorisation of the relevant Traditional Owners, consistent with the commitments entrenched

in clause 1.5(u) and Declaration clause 35(n). Unauthorised use of ICIP is a material breach of this Agreement within the meaning of clause 8.3(a)(ii), and may be dealt with under the expulsion procedure in clause 8.3 as well as by any other remedy available at law or in equity.

7.4 Automatic Landholder Entitlement. Local Aboriginal Land Councils under the Aboriginal Land Rights Act 1983 (NSW) and Prescribed Bodies Corporate under the Native Title Act 1993 (Cth) are entitled to automatic zero-cost issuance of 1,000 Landholder COG$ per hectare of their eligible land holdings, consistent with entrenched clause 1.5(q) and Declaration clause 35(ab). The System must implement this issuance automatically upon verification of LALC or PBC status and hectare entitlement, without requiring application or payment.

7.5 Members' Duties to First Nations. Every Member, as a condition of membership, undertakes to: (a) respect the cultural authority of Traditional Owners in relation to Country, cultural protocols, and ICIP; (b) engage in good faith consultation with the FNAC on matters requiring its input; (c) refrain from taking or directing any action that would cause harm to Country, cultural heritage, or the interests of Traditional Owners as assessed by the FNAC; and (d) support the Foundation's commitments to perpetual stewardship of the Seat of Country entrenched under clause 1.5(s).

7.6 Proprietary Node Hosting. The hosting of the Foundation's first Proprietary Node ([Gundoo Ngiri]) on Traditional Owner Country or LALC land is entrenched under clause 1.5(ac). No resolution may relocate the Proprietary Node from community-controlled land without the prior written endorsement of the FNAC.

7.7 FNAC Endorsement Where Required. Where this Agreement or the Declaration specifies that FNAC endorsement is required for a matter, the matter is not operative until the FNAC has given written endorsement through the System. The FNAC's decision on a matter within its endorsement scope is binding on the Members and the Trustee, and may only be set aside by order of the Supreme Court of South Australia on grounds of manifest error of law or procedural unfairness.

PART 8 — ADMISSION, ELECTRONIC ACCEPTANCE, AND EXIT OF MEMBERS

8.1 Admission. A person becomes a Member and a party to this Agreement by acquiring a Beneficial Unit and the corresponding COG$ Token through any of the following: (a) Electronic registration and payment via the Foundation's website or digital platform, including the explicit electronic acknowledgement of this Agreement required under clause 8.1A; (b) P2P transfer from an existing Member (gift or goods/services only — no fiat); (c) Pay It Forward sponsorship by an existing Member; or (d) Automatic issuance where eligibility conditions are met (including Landholder COG$ for LALCs and PBCs under entrenched clause 1.5(q)). In all cases, acquiring a COG$ Token constitutes acceptance of this Agreement and the entrenched foundation in Part 1 on equal terms with all existing Members.

8.1A Electronic Acceptance and Cryptographic Record. (a) Founding Member — first electronic acceptance. The founding Member is the first natural or legal person to complete the electronic acceptance procedure in clauses 8.1A(b)–(h). The founding Member enters this Agreement on the same terms as every subsequent Member and holds no special rights, privileges, or duties by virtue of being first. The System must record the founding Member's cryptographic acceptance record as the inception record of the Joint Venture, together with the timestamp in UTC and the cryptographic hash of the Agreement text at the moment of the founding Member's acceptance. The founding Member's Personal S-NFT COG$ Token, minted atomically with their acceptance under clause 8.1A(c), is the token that bears the earliest acceptance timestamp recorded by the System. (b) All subsequent Members — electronic acceptance and S-NFT-embedded record. Where admission occurs via the

Foundation's website or digital platform, the prospective Member must, before any S-NFT COG$ Token is issued to them: (i) be presented with this Agreement in full in its current version, with a download link to an electronic copy bearing the Foundation's cryptographic authentication, including the SHA-256 hash of the text at that version and the SHA-256 hash of the founding Caretaker Trustee's Trustee Counterpart Record under clause 10.10A, enabling the Member to verify that the document has not been altered; (ii) actively confirm acceptance of this Agreement by checking an unambiguous acceptance checkbox or equivalent mechanism that cannot be pre-ticked or implied; and (iii) receive a summary disclosure of the key obligations and rights of a Member under this Agreement, including the entrenched provisions in clause 1.5. (c) Atomic minting sequence. Acceptance and minting must occur atomically in the following sequence, without any intervening step that could separate them: (i) Member completes registration and KYC verification; (ii) admission payment is received and cleared; (iii) Member triggers the acceptance checkbox — the System captures the acceptance data; (iv) the System generates the cryptographic acceptance record; and (v) the Member's Personal S-NFT COG$ Token is minted — with the acceptance record hash written permanently into the token's on-chain metadata at the moment of minting. Steps (iv) and (v) must be executed as a single atomic operation. The S-NFT may not be minted without embedding the acceptance record hash, and the acceptance record must not be generated without the S-NFT being minted in the same operation. (d) Cryptographic acceptance record content. The acceptance record generated under clause 8.1A(c)(iv) must contain the following data fields, all of which are written into the S-NFT token metadata under clause 8.1A(c)(v): (i) the S-NFT token ID assigned to this Member on minting — this is the primary identifier linking the acceptance record to the Member's token; (ii) the Member's wallet address and Foundation member identifier; (iii) the version number, title, and execution date of this Agreement as accepted by the Member (the version number and execution date being those in force at the moment of acceptance, as recorded by the System); (iv) a cryptographic hash of the Agreement text at the version accepted, enabling verification that the accepted version has not been altered; (v) a timestamp of the acceptance event in UTC; (vi) a cryptographic hash of the IP address and device metadata recorded at the point of acceptance, with the underlying data stored off-chain in the Foundation's secure database subject to the Privacy Act 1988 (Cth), the Australian Privacy Principles, and the Foundation's Privacy Policy; the on-chain hash enables verification of the underlying record without exposing the personal information on the public ledger; (vii) the payment reference or transaction identifier for the admission payment; and (viii) a confirmation flag indicating that the acceptance checkbox was actively engaged by the Member. (e) Effect of the S-NFT as evidence. The Member's Personal S-NFT COG$ Token: (i) is the permanent, on-chain, cryptographically verifiable record of the Member's acceptance of this Agreement; (ii) is accessible to the Member at any time through their Independence Vault Wallet; (iii) constitutes prima facie evidence, as against the Member and in favour of all other Members and the Trustee, that the Member has read, understood, and accepted this Agreement on the terms recorded in the token metadata. This paragraph does not preclude a Member from raising the defences of fraud, forgery, mistake, incapacity, duress, undue influence, or non est factum in any proceedings; the evidential effect of the acceptance record is that the Member bears the onus of establishing such a defence on the balance of probabilities; (iv) serves as the Member's electronic signature and binding entry into this Agreement for the purposes of applicable law, including the Electronic Transactions Act 1999 (Cth) and the Electronic Transactions Act 2000 (NSW); and (v) cannot be altered, deleted, or amended after minting without cryptographic evidence of alteration being apparent to any Member or auditor through SHA-256 hash verification and state-root anchoring — the acceptance record embedded in the token is permanent in normal operation and forms part of the cryptographically-secured on-chain governance record of the Joint Venture. (f) Database record. The Foundation's operational database must maintain a secondary record of each Member's acceptance, including at minimum the data fields in clause 8.1A(d)(i)

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through (vii). This database record is a secondary legal record and must be preserved for not less than 7 years from the date of acceptance. In the event of any discrepancy between the database record and the S-NFT on-chain metadata, the S-NFT on-chain metadata prevails as the primary record of acceptance. (g) P2P transfer, automatic issuance, and Pay It Forward. Where a Member is admitted by P2P transfer, automatic issuance, or Pay It Forward sponsorship rather than direct website registration, a partial acceptance record covering at minimum the data fields in clause 8.1A(d)(i), (ii), (iii), (iv), and (v) must be written into the token metadata at the time of minting or transfer, and stored in the Members Vault. A Member admitted by these pathways is bound by this Agreement from the moment their token is recorded on-chain. (h) Electronic Transactions Act consent. Each Member, by engaging the acceptance checkbox under clause 8.1A(b)(ii), consents to entering this Agreement by electronic means for the purposes of section 10 of the Electronic Transactions Act 1999 (Cth), section 9 of the Electronic Transactions Act 2000 (NSW), and any equivalent legislation in the Member's home jurisdiction. The Foundation consents to receive the Member's electronic acceptance on the same basis. The cryptographic acceptance record under clause 8.1A(d) constitutes a reliable method of identifying the Member and of indicating the Member's intention to be bound by this Agreement within the meaning of that legislation.

8.1B Effect of Acceptance. From the moment the cryptographic acceptance record is generated under clause 8.1A, the Member: (a) is a party to this Agreement and to the Joint Venture on equal terms with all other Members; (b) is bound by all provisions of this Agreement, including the entrenched foundation in Part 1; (c) holds all rights conferred by this Agreement, including governance rights through the System, Sub-Trust B income unit entitlements, and the right to participate in Members Polls; and (d) is bound by the same obligations as all existing Members, including the prohibition on fiat sale or redemption and the prohibition on actions that would breach the entrenched foundation.

8.1C Version of Agreement Accepted. The System must maintain a record of the version of this Agreement accepted by each Member. Where this Agreement is amended in accordance with clause 10.1, existing Members are bound by the amendment from the date it takes effect. New Members joining after an amendment are presented with and accept the then-current version. The cryptographic acceptance record records the version number at the time of acceptance for each Member individually.

8.2 Exit. A Member exits the Joint Venture by: (a) converting their COG$ Token to Donation COG$ (irrevocable); (b) P2P transfer of their COG$ Token to another eligible Member; (c) written surrender submitted through the System; or (d) death, subject to the inheritance rights in Declaration clause 21.4. There is no fiat redemption of any COG$ Token or corresponding Beneficial Unit. This is entrenched under clause 1.5(i).

8.3 Expulsion. No Member may be expelled except in accordance with this clause or by court order. (a) Material breach. For the purposes of this clause, material breach means conduct by a Member that (i) breaches an entrenched founding principle in clause 1.5; (ii) breaches the First Nations participation provisions in Part 7; (iii) constitutes fraud, theft, or serious misconduct against the Joint Venture, another Member, or the Trustee; or (iv) is a persistent and wilful refusal to comply with the operational rules of the Joint Venture after notice under paragraph (c). (b) Threshold and process. Expulsion requires a resolution of not fewer than two-thirds of all Directors then in office of the Foundation's governing Board, following the procedural steps in paragraphs (c) to (f). (c) Notice. Before considering expulsion, the Board must give the Member written notice through the notices channel in clause 10.13 specifying (i) the alleged material breach in sufficient detail for the Member to respond, (ii) the evidence relied on, and (iii) a period of not less than 30 days in which the Member may cure the breach (where curable) or respond in writing. (d) Right to be heard. The Member has the right to address the Board in person, by video link, or in writing before any expulsion resolution is put. The Member may be accompanied or represented by another person of their choosing, including another

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Member. (e) Decision and reasons. The Board's decision must be in writing, state the specific findings of material breach, and be notified to the Member within 5 business days of the resolution. (f) Appeal to the Supreme Court of South Australia. The expelled Member has an unqualified right to appeal the expulsion to the Supreme Court of South Australia within 28 days of notification. The Court may confirm, set aside, or remit the decision. Pending appeal, the expelled Member's governance rights are suspended but all beneficial entitlements and token holdings are preserved. (g) Treatment of tokens on expulsion. Upon a final expulsion (no appeal lodged within 28 days, or appeal concluded against the Member), the expelled Member's Personal S-NFT COG$ Token is permanently cancelled on the Approved Ledger Infrastructure. Any other COG$ Tokens held by the Member are converted to Donation COG$ at the next available operational cycle. Accrued Sub-Trust B entitlements up to the date of expulsion are distributed to the Member in the ordinary course; no further entitlements accrue after the expulsion date. (h) Cessation of Member status. On final expulsion, the person ceases to be a Member from the expulsion date. The cessation does not release the person from any obligation or liability that accrued while they were a Member, including the confidentiality, IP, and ICIP obligations in Parts 7 and 10. Accrued Sub-Trust B entitlements up to the date of cessation survive cessation of Member status.

8.4 Succession on Death. On the death of a Member, the Member's Personal S-NFT COG$ Token passes to their nominated heir under Declaration clause 21.4, or is permanently cancelled if no valid nomination exists. The heir becomes a Member and a party to this Agreement from the moment the Token is recorded as transferred to the heir on the Approved Ledger Infrastructure, with a partial acceptance record written into the token metadata under clause 8.1A(g). The heir is bound by this Agreement from that moment on equal terms with all existing Members. Where the heir is a minor, the minor's Member rights are exercised by the parent or guardian under clause 8.5 until the minor reaches 18. For the avoidance of doubt, the entrenched soulbound nature of Personal S-NFT COG$ under clause 1.5(g) is not breached by inheritance under this clause 8.4 or under Declaration clause 21.4. Inheritance on the death of a Member is the single specific exception to the soulbound rule, reflecting that death is not a voluntary transfer and that the Joint Venture's intergenerational stewardship purpose requires transmission of Member status to nominated heirs.

8.5 Minor Members and Kids S-NFT COG$. A Kids S-NFT COG$ Token is held for the benefit of a child under 18. The child is a Beneficial Unit Holder for the purposes of the Declaration but, until the child reaches 18, is not a Member under this Agreement in their own right. The child's parent or guardian acts as the child's legal representative and exercises the Kids S-NFT proxy vote under clause 4.2. Where two or more parents or guardians have equal legal responsibility for the child, the parent or guardian registered at the time of token acquisition is the proxy holder; a change of proxy requires evidence satisfactory to the Trustee of written agreement between all parents or guardians with equal legal responsibility, or a court order. The parent or guardian accepts this Agreement on the child's behalf at the time the Kids S-NFT COG$ Token is acquired, and is bound by its terms in that representative capacity. On the child's 18th birthday, the child automatically becomes a full Member under this Agreement; a partial acceptance record is written into their token metadata under clause 8.1A(g); and their Independence Vault Wallet is activated in their own name. The parent or guardian's proxy rights cease at that moment. If the child dies before reaching 18, the Kids S-NFT COG$ Token is dealt with in accordance with the inheritance provisions of the Declaration.

PART 9 — DISPUTE RESOLUTION

9.1 Disputes under this Agreement are raised first through the System with written notice describing the dispute, the provision alleged to be breached, and the remedy sought. For the purposes of this Part

9, "party" includes (a) any Member, (b) the Foundation, and (c) the Trustee, whose submission to the dispute resolution process set out in this Part is a fiduciary obligation owed to the Members under the Declaration.

9.2 If not resolved within 30 days, any party may refer the dispute to mediation by an independent mediator agreed by the parties or appointed by the Law Society of South Australia.

9.3 If mediation does not resolve the dispute within 60 days, any party may refer the dispute to binding arbitration under the Commercial Arbitration Act 2011 (SA).

9.4 Nothing in this Part limits a Member's entrenched right to enforcement proceedings in the Supreme Court of South Australia for breach of trust. The Members and the Trustee acknowledge that damages may be an inadequate remedy for breach of obligations under this Agreement, including Trustee obligations to implement Members Poll results, to execute multisignature authorisations within the times specified in clause 5.1(g) and clause 5.2(d), to publish reports and notices under clause 5.3 and clause 10.13, and to maintain the Declaration in accordance with clause 1.4 and clause 6.6. In addition to any other remedy, a Member is entitled to seek specific performance, injunctive relief, declaratory relief, or other equitable remedy from the Supreme Court of South Australia for breach of any such obligation, without the need to prove damages or to exhaust the dispute resolution pathway in clauses 9.1 to 9.3 where urgent relief is required to prevent irreparable harm to the Joint Venture or to an entrenched founding principle.

PART 10 — GENERAL PROVISIONS

10.1 Amendment. This Agreement may be amended by Special Resolution (75%) of S-NFT holder Members through a Members Poll. No amendment may contravene an entrenched founding principle except through the procedure in clause 1.6.

10.2 Supremacy. This Agreement is the controlling instrument of the Joint Venture. The Declaration is subordinate to this Agreement and must be administered in accordance with this Agreement. The Trustee holds and administers the Declaration on behalf of the Members and must amend it as directed by the Members.

10.3 Declaration as Legal Record. The Declaration is the legal trust instrument that gives effect to the Members' Joint Venture in the Australian legal system. It is maintained by the Trustee as a record of the Members' agreed rules. It is not an independent source of authority over the Members.

10.4 Severability. If any provision of this Agreement is held by a court of competent jurisdiction to be invalid, void, unenforceable, illegal, or contrary to public policy, the provision must first be read down to the extent necessary to make it valid and enforceable while preserving its essential purpose. If it cannot be read down, the provision must be severed from this Agreement. The remainder of this Agreement continues in full force, provided that severance does not defeat the fundamental purpose of this Agreement or any entrenched founding principle under clause 1.5. Where severance would defeat the fundamental purpose or an entrenched principle, the Members must by Special Resolution substitute a replacement provision that achieves the same purpose to the maximum extent permitted by law.

10.5 Entire Agreement. This Agreement, together with the Declaration and Sub-Trust Deeds, constitutes the entire operational and legal framework of the Joint Venture. No prior representations, negotiations, or draft instruments form part of this Agreement. The Declaration and Sub-Trust Deeds referred to in this Agreement are the versions in force from time to time as maintained by the Trustee. The version of the Declaration and of each Sub-Trust Deed accepted as at the execution of this Agreement is identified by its version number, date, and SHA-256 hash, which are published by the

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Foundation through the System and preserved in the Foundation's operational database as part of the founding record. Where the Declaration or a Sub-Trust Deed is subsequently amended in accordance with clause 1.4 or any other mechanism in this Agreement, the amended version forms part of the legal framework from the date of amendment; cross-references in this Agreement to clauses of the Declaration or a Sub-Trust Deed are to the relevant clause as it appears in the version in force at the material time. If a Declaration amendment creates an inconsistency with a cross-reference in this Agreement that is not resolved within 30 days of the amendment, the Trustee must either (a) propose a consequential amendment to this Agreement by Members Poll under clause 10.1, or (b) apply to the Supreme Court of South Australia under clause 10.8 for directions.

10.6 No Assignment. A Member's rights under this Agreement are personal and cannot be assigned separately from the corresponding Beneficial Unit and COG$ Token.

10.7 Entry into Force. This Agreement enters into force upon the generation of the first cryptographic acceptance record under clause 8.1A by the founding Member, together with the generation of the Trustee Counterpart Record of the founding Caretaker Trustee under clause 10.10A. Each subsequent Member enters this Agreement individually and on equal terms upon the generation of their own cryptographic acceptance record under clause 8.1A, or, in the case of admission by P2P transfer, automatic issuance, or Pay It Forward sponsorship, upon acquisition of their COG$ Token and recording of their partial acceptance record under clause 8.1A(g). The Agreement operates as a multi-party contract binding each Member severally (and not jointly) from the date of that Member's admission, subject always to the liability limitation in clause 10.9. The Trustee is a party to this Agreement in its Trustee capacity only, as provided in clause 10.10, and is bound by every obligation this Agreement and the Declaration impose on it in that capacity. For the avoidance of doubt, the founding Member's cryptographic acceptance record is generated in their personal capacity as a Member; the founding Caretaker Trustee's Trustee Counterpart Record is generated separately in their Trustee capacity under clause 10.10A; and the two records together bring this Agreement into force.

10.7A Consideration. Each Member's promises under this Agreement are supported by consideration consisting of: (a) that Member's membership consideration paid to the Foundation on admission; (b) the reciprocal promises of every other Member to abide by this Agreement on the same terms; (c) the rights and entitlements conferred on the Member by this Agreement and the Declaration; and (d) the economic and governance benefit to the Member of admission to the Joint Venture. Each Member acknowledges that the admission of subsequent Members on the same terms is part of the consideration flowing to all existing Members, and that each Member is bound to accept every other Member admitted in accordance with this Agreement and the Declaration.

10.8 Governing Law and Jurisdiction. This Agreement is governed by the law of South Australia, Australia. The Supreme Court of South Australia has exclusive jurisdiction to determine any dispute arising from or in connection with (a) the entrenched founding principles in clause 1.5; (b) the Trustee's duties under Part 5 and the Declaration; (c) the validity, construction, or interpretation of this Agreement; (d) any application for specific performance, injunctive, or declaratory relief against the Trustee, the Foundation, or the Board; and (e) any challenge to a Members Poll result or an auditor's determination under clauses 6.7 and 6.7A. The Supreme Court of South Australia has non-exclusive jurisdiction over all other disputes arising from or in connection with this Agreement, including disputes between individual Members that do not engage the matters in paragraphs (a) to (e). Each Member and the Trustee submits to this jurisdiction and waives any objection based on forum non conveniens or improper venue.

10.9 Members Liability. Notwithstanding any characterisation of the relationship between Members as a partnership for the purposes of section 9 of the Corporations Act 2001 (Cth) or otherwise, the Joint

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Venture is not a partnership within the meaning of the Partnership Act 1891 (SA) or any equivalent partnership legislation in any Australian jurisdiction, and nothing in this Agreement is intended to create joint and several liability between Members. The legal form of the Joint Venture is a trust. Members are beneficiaries of the CJVM Hybrid Trust, not co-owners of its assets, and their rights and obligations are those of beneficiaries under Australian trust law. A Member's financial liability in connection with the Joint Venture is strictly limited to the membership consideration paid by that Member together with any further voluntary contribution made by that Member. In this clause, further voluntary contribution means an additional payment made by the Member to acquire additional Units or COG$ Tokens for the Member's own account; it does not include any amount paid by the Member on behalf of another Member (including by way of Pay It Forward sponsorship or gift), which is a contribution to the Joint Venture's community pathways and does not expose the sponsoring Member to liability beyond the amount paid. No Member is liable for the debts, obligations, or liabilities of the Joint Venture, the CJVM Hybrid Trust, the Trustee, the Foundation, or any other Member. The Trustee alone holds legal title to trust property and is the legal person responsible for contracts and liabilities incurred on behalf of the trust, with its right of indemnity from trust property as provided by the Declaration and the Trustee Act 1936 (SA). The Trustee's right of indemnity is exercisable first from trust property. To the extent trust property is insufficient to satisfy a valid indemnity claim, the Trustee's residual right of indemnity against Members under the rule in Hardoon v Belilios [1901] AC 118 and equivalent Australian authority is expressly limited to the value of each Member's membership consideration and any further voluntary contribution, and does not extend to any Member's personal assets beyond that amount. No Member is personally liable to the Trustee, to any creditor of the trust, or to any other person beyond the amount of their membership consideration and any further voluntary contribution. The invocation of partnership-law characteristics in clause 1.8 is a matter of legal substance for the purpose of placing the Joint Venture outside the managed investment scheme definition in section 9 of the Corporations Act 2001 (Cth); it does not import the Partnership Act 1891 (SA) or create personal liability of any Member for any debt of the Joint Venture. Further, the Members are parties to a trust structure constituted by the Declaration and governed by this Agreement, which is not a partnership within the meaning of section 1 of the Partnership Act 1891 (SA). To the extent that the Members may be regarded as an association for any legal purpose, that association does not satisfy the primary statutory definition of partnership in section 1 of the Partnership Act 1891 (SA), which requires persons carrying on a business in common with a view to profit, because the Members' association is for community stewardship and not for profit in the partnership-law sense; and this Agreement constitutes the Members as an association of Beneficial Unit Holders participating in the Joint Venture, such that no partnership arises by virtue of that association. See further clause 1.7A and clause 10.9A.

10.9A Section 115 Corporations Act and absence of 20-member cap. Section 115 of the Corporations Act 2001 (Cth) prohibits the formation of an unincorporated partnership or association with more than 20 members except where the partnership or association is incorporated under an Australian law or falls within an exception prescribed by regulation. For the reasons set out in clauses 1.7A, 1.8, and 10.9 of this Agreement, neither section 115(1)(a) nor section 115(1)(b) applies to the Joint Venture or to any Member. (a) Not a partnership for section 115 purposes. The Joint Venture is not a partnership within the meaning of section 115, for each of the following independent reasons: (i) it does not satisfy the definition in section 1 of the Partnership Act 1891 (SA), as confirmed by clause 10.9; (ii) no partnership arises from the Members' Beneficial Unit Holder capacity, as confirmed by clause 1.7A(d)(i); (iii) no partnership arises from the Members' Operational Member capacity, as confirmed by clause 1.7A(d)(ii); (iv) no partnership arises from the two capacities held together, as confirmed by clause 1.7A(d)(iii); and (v) no partnership arises from the international sister foundation arrangements

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under Part 12, which expressly exclude any relationship of agency, subordination, merger, joint venture for legal purposes, or common control (clause 12.3). (b) Not an association for section 115 purposes. To the extent that the Members may be characterised as an association for the purposes of section 115, that association does not have "as an object gain for itself or for any of its members" within the meaning of section 115(1)(a). The object of the Joint Venture and of the Members' association through it is community stewardship of in-ground mineral assets, First Nations participation, environmental, social, and governance engagement with portfolio companies, and perpetual custodianship of community-owned resources, as entrenched in the founding principles in clause 1.5. Distributions from Sub-Trust B to Beneficial Unit Holders and from Sub-Trust C to charitable beneficiaries are incidental to those stewardship objects and do not constitute the Joint Venture's object of gain. The relevant test under section 115(1)(a) is the object of the association, not the incidental economic consequences to its members, and the object of the Members' association is stewardship, not gain. (c) Trust-based structure — no section 115 application. The Members' relationships with each other and with the Joint Venture are constituted through a trust structure. The CJVM Hybrid Trust is a validly constituted trust under the law of South Australia, and the Beneficial Unit Holders of that trust do not, by virtue of their beneficiary status, form a partnership or association for the purposes of section 115. Trust beneficiaries are not subject to the section 115 cap, and a structure that constitutes its member-facing relationships through a trust does not bring those beneficiaries within section 115 merely because the trust has a large number of beneficiaries. (d) Contract-based operational relationship — no section 115 application. The Members are additionally parties to this Agreement as a multi-party contract. A multi-party contract is not a partnership or an association for section 115 purposes unless it satisfies the statutory tests for either, which this Agreement does not, for the reasons in paragraphs (a) and (b). Commercial contracts with large numbers of parties are routinely entered into under Australian law without triggering section 115, and this Agreement is such a contract. (e) No cap on Joint Venture membership. Accordingly, there is no legal cap on the number of Members of the Joint Venture. The Joint Venture is designed for community participation at scale, and the entrenched anti-capture cap of 1,000,000 Units in clause 1.5(e) operates only to prevent concentration of ownership, not to impose a membership cap for legal purposes. No Member is liable for a strict liability offence under section 115(3) by virtue of participating in the Joint Venture. (f) Non-reliance on regulations. The Foundation does not rely on regulation 2A.1.01 of the Corporations Regulations 2001 (Cth) or on any prescribed exception under section 115(2). The Foundation's position is that section 115 does not apply at all, for the reasons in paragraphs (a) to (e), rather than that it applies subject to an exception.

10.10 Trustee as Party in Trustee Capacity. The Trustee is a party to this Agreement in its capacity as Trustee only, and not as a Member. The Trustee's rights and obligations as a party are strictly those of Trustee Functions under Part 5 and those duties and obligations expressly imposed on the Trustee by this Agreement and by the Declaration. The Trustee has no governance vote, no beneficial entitlement, and no Sub-Trust B income unit by virtue of being Trustee. This clause does not prevent a natural person who is a Trustee from separately being a Member; in that case, their Member rights and obligations arise independently of, and separately from, their Trustee role. The Trustee's acceptance of office as Caretaker Trustee or Trustee constitutes acceptance that the Declaration is subordinate to this Agreement and that the Trustee must administer the trust accordingly. No person may be appointed as Trustee or Caretaker Trustee after the date of this Agreement without first giving written acknowledgement of this Agreement and consent to be bound by its terms in the performance of Trustee Functions. The founding Caretaker Trustee, and every successor Trustee or Caretaker Trustee appointed after the date of this Agreement, gives their counterpart acknowledgement by completing the Trustee electronic acceptance procedure in clause 10.10A, which generates a Trustee Counterpart

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Record constituting the Trustee's entry as a party to this Agreement in their Trustee capacity and their consent to be bound by the terms of this Agreement in the performance of Trustee Functions. If the founding Caretaker Trustee also elects to become a Member, they do so separately by completing the Member electronic acceptance procedure under clause 8.1A on the same terms as any other Member; the two capacities are distinct and require separate acceptance records.

10.10A Trustee Counterpart Record — Electronic Acceptance Procedure. (a) Form of acceptance. The founding Caretaker Trustee, and every successor Trustee or Caretaker Trustee appointed after the date of this Agreement, gives their counterpart acknowledgement under clause 10.10 by completing the Trustee electronic acceptance procedure in this clause. The Trustee enters this Agreement in their Trustee capacity only, and not as a Member. No COG$ Token is minted on a Trustee Counterpart Record. (b) Trustee Counterpart Record — atomic generation. The System must generate the Trustee Counterpart Record atomically at the moment of acceptance. The prospective Trustee must, before any Trustee Counterpart Record is generated: (i) be presented with this Agreement in full in its current version; (ii) actively confirm acceptance of this Agreement in their Trustee capacity by engaging an unambiguous Trustee acceptance mechanism that cannot be pre-ticked or implied; and (iii) acknowledge, through the same mechanism, that this Agreement is the supreme governing instrument of the Joint Venture, that the CJVM Hybrid Trust Declaration is subordinate to this Agreement, and that the Trustee consents to be bound by the terms of this Agreement in the performance of Trustee Functions. (c) Trustee Counterpart Record content. The Trustee Counterpart Record must contain the following data fields: (i) a unique Trustee Counterpart Record identifier assigned by the System; (ii) the Trustee's full name and the reference under the Declaration by which the Trustee was appointed; (iii) the version number, title, and execution date of this Agreement as accepted by the Trustee; (iv) a SHA-256 cryptographic hash of the Agreement text at the version accepted, enabling verification that the accepted version has not been altered; (v) a timestamp of the acceptance event in UTC; (vi) a cryptographic hash of the IP address and device metadata recorded at the point of acceptance, with the underlying data stored off-chain in the Foundation's secure database subject to the Privacy Act 1988 (Cth), the Australian Privacy Principles, and the Foundation's Privacy Policy; the on-chain hash enables verification of the underlying record without exposing the personal information on the public ledger; (vii) a confirmation flag indicating that the Trustee acceptance mechanism under clause 10.10A(b)(ii) was actively engaged by the Trustee; and (viii) the Trustee's explicit acknowledgement under clause 10.10A(b)(iii), recorded as a permanent text field within the Record. (d) Storage and integrity. The full Trustee Counterpart Record is stored in the Foundation's secure systems. A SHA-256 hash of the full Record is committed to the System's public ledger with state-root anchoring. The on-chain hash and the off-chain Record together constitute the foundational record of the Trustee's entry into this Agreement. The Foundation must preserve the Trustee Counterpart Record for the operational life of the Joint Venture and for not less than 7 years following cessation of the Trustee's office, whichever is the longer period. (e) Electronic Transactions Act consent. The Trustee, by engaging the Trustee acceptance mechanism under clause 10.10A(b)(ii), consents to entering this Agreement by electronic means for the purposes of section 10 of the Electronic Transactions Act 1999 (Cth), section 9 of the Electronic Transactions Act 2000 (NSW), and any equivalent legislation in the Trustee's home jurisdiction. The Foundation consents to receive the Trustee's electronic acceptance on the same basis. The Trustee Counterpart Record constitutes a reliable method of identifying the Trustee and of indicating the Trustee's intention to be bound by this Agreement in their Trustee capacity within the meaning of that legislation. (f) Effect. The Trustee Counterpart Record is the permanent, cryptographically verifiable record of the Trustee's acceptance of this Agreement in their Trustee capacity. It has the same evidential weight as a wet ink counterpart acknowledgement under the general law. The Trustee Counterpart Record (i) constitutes prima facie evidence, as against the

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Trustee and in favour of the Members, that the Trustee has read, understood, and accepted this Agreement on the terms recorded in the Record in their Trustee capacity; and (ii) cannot be altered, deleted, or amended after generation without cryptographic evidence of alteration being apparent to any Member or auditor through SHA-256 hash verification and state-root anchoring. This paragraph does not preclude the Trustee from raising the defences of fraud, forgery, mistake, incapacity, duress, undue influence, or non est factum in any proceedings. (g) Declaration and other instruments unaffected. This clause governs only the Trustee's acknowledgement of this Agreement as the supreme governing instrument of the Joint Venture. The Declaration and the Sub-Trust Deeds remain governed by their own terms; nothing in this clause alters the form or effect of the Trustee's appointment under the Declaration or the Declaration's execution formalities.

10.11 No Member Authority to Bind. No Member, by virtue of being a Member, has any authority to contract on behalf of, pledge the credit of, or otherwise bind the Joint Venture, the CJVM Hybrid Trust, the Trustee, the Foundation, or any other Member. Only the Trustee, acting within Trustee Functions and in accordance with this Agreement and the Declaration, may bind the trust in dealings with third parties. Any act of a Member purporting to bind any person or entity beyond that Member's own person is void and unenforceable, and the Member is personally liable for any loss caused to a third party who acted in reliance on a purported authority that did not exist.

10.12 Force Majeure. A Member's failure to perform an obligation under this Agreement is excused to the extent caused by an event beyond that Member's reasonable control, including natural disaster, prolonged regional telecommunications failure, serious illness or incapacity, bereavement, or government action that prevents access to the System. The Member must notify the System of the force majeure event as soon as reasonably practicable after the event ends. Force majeure does not excuse obligations that can be performed despite the event. This clause does not affect any Member's beneficial entitlements, which accrue regardless of active participation. The obligations of the Foundation and the Trustee under this Agreement are subject to force majeure on the same basis as Member obligations: a failure by the Foundation or the Trustee to perform is excused to the extent caused by an event beyond their reasonable control (including infrastructure outage, telecommunications failure, natural disaster, or government action), provided the Foundation or Trustee notifies Members through the System as soon as reasonably practicable after the event ends and takes reasonable steps to restore performance.

10.13 Notices. All notices under this Agreement are given primarily through the System and are sent to the email address the Member has registered in their Independence Vault Wallet. A notice sent through the System is deemed received on the day it is sent. Where the Member has registered a postal address, the Foundation may also send notice to that address, which is deemed received five business days after posting. A Member must keep their contact details current through the System. A notice to the Foundation is given to the Trustee at the Foundation's registered address or through the System's designated notice channel. Notices required by applicable law to be given in a particular form must be given in that form.

10.14 Privacy and Data Protection. The Foundation handles Member personal information in accordance with the Australian Privacy Principles under the Privacy Act 1988 (Cth) and the Foundation's Privacy Policy, as amended from time to time and published through the System. Members consent to the collection, storage, and processing of their personal information as required to operate the Joint Venture, maintain the cryptographic acceptance record under clause 8.1A, and comply with AML/CTF and KYC obligations. In the event of an eligible data breach, the Foundation must comply with the Notifiable Data Breaches scheme under Part IIIC of the Privacy Act 1988 (Cth) and notify affected Members without undue delay and in any event within the time limits prescribed by law. Where personal information is disclosed outside Australia, whether to auditors appointed

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under clause 6.7A or to other parties engaged by the Foundation, the Foundation must take reasonable steps under Australian Privacy Principle 8 to ensure the overseas recipient handles the information consistently with the Australian Privacy Principles.

10.15 Intellectual Property. The Foundation owns all intellectual property rights in the System, including smart contract source code, platform code, the Members Consensus Network, the [Gundoo Ngiri] Proprietary Node specifications, and this Agreement. Members have a non-exclusive, non-transferable, revocable licence to use the System for the purposes of the Joint Venture, limited to the duration of their Member status. The Members may resolve by Members Poll to release any part of the System as open source under a licence approved by Members Poll, with a preference for permissive licences (MIT, Apache 2.0, or BSD) unless the release implicates Traditional Owner Country or ICIP, in which case a custom community licence endorsed by the FNAC is required. Any such release is subject to the commitments to First Nations participation, Traditional Owner Country, ICIP, and community control entrenched in clauses 1.5(k), 1.5(s), 1.5(u), and 1.5(ac), and to FNAC endorsement where ICIP or Traditional Owner Country is implicated. The trademarks COG$™, Community Owned Gold and Silver™, and Community Operated Governance Structure™ are the property of the Foundation and must not be used by any person except with the Foundation's written consent or as permitted by this Agreement. The grant of a Technology and Governance Model Licence to a sister foundation under clause 12.5 is a permitted release of intellectual property under this clause when authorised by Special Resolution and, where the release implicates Traditional Owner Country or ICIP, endorsed in writing by the FNAC. The underlying ownership of all intellectual property remains with the Foundation; a Model Licence is a grant of use, not a transfer of ownership.

10.16 Interpretation. In this Agreement, unless the context otherwise requires: (a) headings are for convenience only and do not affect interpretation; (b) the singular includes the plural and the plural includes the singular; (c) references to a person include a natural person, a body corporate, a partnership, an association, an unincorporated body, a trustee, and a government body; (d) the words "including", "includes", and "such as" are not words of limitation; (e) a reference to a statute includes any amendment, replacement, or re-enactment, and any subordinate legislation made under it; (f) a reference to a clause, sub-clause, Part, or Schedule is a reference to a clause, sub-clause, Part, or Schedule of this Agreement; (g) a reference to "dollars" or "$" is a reference to Australian dollars; (h) a reference to a business day is a reference to a day other than a Saturday, Sunday, or public holiday in Adelaide, South Australia; (i) where the day on which something must be done is not a business day in Adelaide, it must be done on the next business day; (j) terms defined in the Declaration have the same meanings in this Agreement unless separately defined; and (k) this Agreement is to be construed to give effect to its purposes as set out in the Recitals and Part 1.

10.17 Counterparts. This Agreement may be executed in counterparts, each of which when executed is an original and all of which together constitute one and the same instrument. The founding record is the cryptographic acceptance record of the founding Member under clause 8.1A together with the Trustee Counterpart Record of the founding Caretaker Trustee under clause 10.10A; subsequent Member acceptance records under clause 8.1A and subsequent Trustee Counterpart Records under clause 10.10A are each treated as part of a single executed instrument.

PART 11 — UNITHOLDERS AGREEMENT PROVISIONS

11.1 This Agreement serves as the Unitholders Agreement for the Joint Venture. Each Member, by holding a Beneficial Unit and the corresponding COG$ Token, is a unitholder bound by this Agreement.

PART 12 — INTERNATIONAL SISTER-FOUNDATION ALLIANCES

12.1 Authority to Enter International Sister Foundation Alliances. The Trustee, acting at the direction of the Members under this Part, may enter into Sister Foundation Protocols with sister community foundations established in any nation of the Commonwealth of Nations, and in any other common-law jurisdiction approved for the purpose by Members Poll under clause 12.2(d). Entry into any such Sister Foundation Protocol is a Trustee Function for the specific purpose authorised by Members Poll under this Part only, and does not expand Trustee authority beyond what is authorised by this Part. The Trustee has no authority to enter into, amend, or terminate a Sister Foundation Protocol unilaterally; every act of the Trustee under this Part must be authorised by the procedure in clause 12.4.

12.2 Definition of Sister Foundation. A sister foundation is an independent legal entity in another jurisdiction that: (a) operates under its own trust or equivalent legal structure, governed by its own board, constitution, and governance instruments; (b) has adopted governance principles substantially analogous to the entrenched founding principles in clause 1.5, including one-member-one-vote governance, First Nations or Indigenous advisory sovereignty, Free Prior and Informed Consent, non-redemption and non-fiat-sale of membership tokens, and perpetual community stewardship; (c) has constituted its own First Nations, Indigenous, or Traditional Owner advisory council with authority over the sister foundation's matters in its jurisdiction, on terms analogous to the FNAC under Part 7; and (d) is recognised by the Members by Special Resolution as a sister foundation for the purposes of this Agreement. Recognition is not automatic; each proposed sister foundation requires its own Special Resolution. Where a proposed sister foundation is established outside the Commonwealth of Nations, the same Special Resolution must also approve the jurisdiction as a common-law jurisdiction for the purposes of clause 12.1.

12.3 Peer Alliance Principle. Every Sister Foundation Protocol operates as a peer alliance between two legally independent foundations. No Sister Foundation Protocol may: (a) create any relationship of agency, subordination, merger, joint venture for legal purposes, or common control between the Foundation and the sister foundation; (b) subject the Foundation, the CJVM Hybrid Trust, the Board, the Trustee, or any Member to the governance or jurisdiction of the sister foundation; (c) subject the sister foundation or its members to the governance of this Agreement; or (d) pool trust property between the two foundations. Each foundation retains sole governance of its own trust, its own members, its own Board, its own Advisory Council, and its own assets.

12.4 Safeguards and Required Approvals. No Sister Foundation Protocol may be entered into, amended, or terminated unless each of the following is satisfied. (a) Members Poll by Special Resolution authorises the Protocol, the amendment, or the termination, with the proposal including the full text of the Protocol, the proposed sister foundation's constitutional documents, and a plain-language summary of the obligations assumed by the Foundation. (b) FNAC endorsement is obtained in writing through the System where the Protocol implicates Traditional Owner Country, ICIP, Proprietary Node hosting, information-sharing with a foreign Indigenous advisory body, or any other matter within the FNAC's endorsement scope under clauses 1.5(k), 1.5(u), 1.5(ac), 7.6, and 7.7. (c) Ring-fencing is preserved: Australian trust property remains under the sole legal title of the Trustee; Australian Member personal information remains subject to the Privacy Act 1988 (Cth), the Australian Privacy Principles, and clause 10.14, and is not transferred to the sister foundation except under a cross-border data-sharing arrangement that satisfies Australian Privacy Principle 8; and the Members Vault multisignature authority for Australian trust property remains exclusively with the Australian Board. (d) No cross-border token issuance: no COG$ Token of any class may be issued to a member of a sister foundation, and no token of a sister foundation may be issued to an Australian Member, except in accordance with a specific regulatory clearance obtained in both jurisdictions and a

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subsequent Special Resolution ratifying that clearance. (e) No sister-foundation control over entrenched principles: nothing in any Sister Foundation Protocol may amend, circumvent, subject to external approval, or otherwise diminish any entrenched founding principle in clause 1.5 or the amendment procedure in clause 1.6.

12.5 Model Licensing. The Members may, by Special Resolution and subject to FNAC endorsement where Traditional Owner Country or ICIP is implicated, authorise the Trustee to grant a sister foundation a perpetual, royalty-free, non-exclusive, and non-transferable licence to use the COGs model, including the trust architecture, governance instruments, smart contract codebase, and operational protocols, for the sole purpose of the sister foundation's own community stewardship mission in its jurisdiction. The Foundation retains ownership of all underlying intellectual property under clause 10.15. A Model Licence is a grant of use, not a transfer of ownership, and does not constitute a disposal of trust property within the meaning of the Declaration. The terms of each Model Licence, including the scope of permitted use, quality-control standards, compliance requirements, FNAC endorsement conditions, and termination provisions, must be recorded in a written Technology and Governance Model Licence Agreement executed by the Trustee under clause 5.1(i).

12.6 Proprietary Node Reconciliation. The entrenched Proprietary Node hosting requirement in clause 1.5(ac) applies to the Foundation's first Proprietary Node and any successor Australian Proprietary Node, and requires hosting on Australian Traditional Owner Country or LALC land. Any Proprietary Node, Consensus Network node, or shard hosted by a sister foundation in its own jurisdiction is sovereign to that sister foundation and is not a Foundation Proprietary Node for the purposes of clause 1.5(ac). Cross-border network interoperability under a Sister Foundation Protocol does not relocate, share, or diminish the Foundation's Proprietary Node, and does not transfer any governance authority over Australian Members Vault operations outside Australia.

12.7 Reporting. The Trustee must report to Members through the System, not less than annually, on every Sister Foundation Protocol in force, including any material matters arising under the Protocol, any Protocol amendments negotiated or proposed, and any proposal to terminate. This reporting obligation is additional to, and does not displace, the quarterly operational activity log requirements under clause 4.1 and the Schedule (Operational Control Evidence Requirements).

12.8 Termination. A Sister Foundation Protocol may be terminated by the Foundation on notice in accordance with the Protocol's terms, or without cause by Special Resolution under clause 12.4(a). On termination, the Trustee must take all reasonable steps to (a) recover Australian Member personal information held by the sister foundation, consistent with the Privacy Act 1988 (Cth); (b) preserve the Foundation's intellectual property; (c) wind down cross-border infrastructure functions with minimum disruption to Australian Members; and (d) report the termination and any material consequences to Members through the System within 30 days. Termination does not release the Foundation or the sister foundation from obligations that accrued before the termination date.

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SCHEDULE — OPERATIONAL CONTROL EVIDENCE REQUIREMENTS

The Trustee must compile and preserve the following evidence on a quarterly basis: (a) Member engagement metrics — number of active Independence Vault Wallet sessions; number of Members who accessed the System in the quarter; number of governance proposals submitted by Members; number of Members Polls conducted and participation rates. (b) Member-initiated operations — number of P2P transfers initiated by Members; number of class swap conversions; number of distribution election changes; number of donation conversions. (c) Governance outcomes — complete record of all Members Poll results, including the proposal text, voting period, participation rate, and outcome; evidence that the Trustee implemented each outcome within the specified timeframe. (d) SHA-256 hash attestation log — a complete, time-stamped record of every SHA-256 hash generated by the System for every Member-initiated action, verifiable by any Member through their Independence Vault Wallet. (e) Trustee limitation evidence — a record of every instance in which the Trustee exercised its multisignature function, the time between Member request and Trustee execution, and confirmation that no request was refused without written reasons identifying a specific legal provision.

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FOUNDING MEMBER SIGNATURE

This Agreement is brought into force by the first cryptographic acceptance record generated under clause 8.1A by the founding Member — being the first natural or legal person to complete the electronic acceptance procedure — together with the Trustee Counterpart Record of the founding Caretaker Trustee generated under clause 10.10A, both stored in the Foundation's secure systems with SHA-256 hash commitments on the System's public ledger. Members are presented with the electronic version of this Agreement, cryptographically authenticated by the hash of the foundational record. This Agreement is not a deed. It does not require witnessing or signing on paper by any party to be legally effective. Every subsequent Member enters this Agreement individually upon the generation and S-NFT-embedding of their cryptographic acceptance record under clause 8.1A. Every successor Trustee or Caretaker Trustee enters this Agreement in their Trustee capacity by the generation of a Trustee Counterpart Record under clause 10.10A. No wet ink signature, scan, or physical counterpart is required. The founding Caretaker Trustee's Trustee Counterpart Record is given separately in their Trustee capacity under clause 10.10A. The Trustee is a party to this Agreement in its Trustee capacity only. The Trustee's obligations arise under this Agreement, the Declaration, and the Sub-Trust Deeds, which the Members direct the Trustee to maintain in accordance with this Agreement.

FOUNDING RECORD — ELECTRONIC ACCEPTANCE

The founding record of this Agreement is the cryptographic acceptance record of the founding Member generated under clause 8.1A, together with the Trustee Counterpart Record of the founding Caretaker Trustee generated under clause 10.10A. Both records are stored in the Foundation's secure systems and cryptographically linked to the text of this Agreement, with SHA-256 hashes committed to the System's public ledger. Members receive only the electronic version of this Agreement, authenticated by the SHA-256 hash of the foundational record. No wet ink signature or paper counterpart is involved in bringing this Agreement into force. The inception date of the Joint Venture is the UTC timestamp recorded on the founding Member's cryptographic acceptance record. The identifier of the founding Member's Personal S-NFT COG$ Token is recorded by the System as the inception token of the Joint Venture and retained in the Foundation's permanent record. No special rights or privileges attach to the founding Member by virtue of being first.

FOUNDING CARETAKER TRUSTEE — COUNTERPART ACKNOWLEDGEMENT (clause 10.10A)

Thomas Boyd Cunliffe of 780 Sugarbag Road West, DRAKE 2469 NSW, in his Trustee capacity only. I give my counterpart acknowledgement of this Agreement by completing the Trustee electronic acceptance procedure in clause 10.10A. I acknowledge that this Joint Venture Participation Agreement is the supreme governing instrument of the Joint Venture; that the CJVM Hybrid Trust Declaration is subordinate to this Agreement; and that I am bound by every obligation this Agreement imposes on the Trustee in the performance of Trustee Functions. My acceptance generates a Trustee Counterpart Record under clause 10.10A, which is stored in the Foundation's secure systems with a SHA-256 hash committed to the System's public ledger and retained as the foundational record of my entry into this Agreement in my Trustee capacity. No wet ink signature or paper counterpart is given or required. THOMAS BOYD CUNLIFFE, Founding Caretaker Trustee.

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END OF JOINT VENTURE PARTICIPATION AGREEMENT